Notary Public Guidebook

and

Study Guide

Ohio Notary

SERVICES

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Introduction

This guidebook is intended to provide you with a general overview of how to become and serve as a notary public. A notary public is a public officer appointed by the Ohio Secretary of State to serve as an impartial witness to a transaction.

As a notary you will be able to administer oaths, take and certify acknowledgments (e.g., deeds, mortgages, liens, powers of attorney and other instruments of writing), and depositions.

The office of notary public is created by the statutes of the state of Ohio, which can be found in Chapter 147 of the Ohio Revised Code. This guidebook includes some of the pertinent sections, of Chapter 147.

PLEASE NOTE: A notarial commission does not grant you permission to practice law in the state of Ohio. Should you have specific questions as to what is or what is not the "practice of law," please consult an attorney.

147.01 Appointment and Commission of Notaries Public

(A) The secretary of state may appoint and commission as notaries public as many persons who meet the qualifications of division (B) of this section as the secretary of state considers necessary.

(B) In order for a person to qualify to be appointed and commissioned as a notary public, except as provided in division (F) of this section, the person shall demonstrate to the secretary of state that the person satisfies all of the following:

(1) The person has attained the age of eighteen years.

(2)(a) Except as provided in division (B)(2)(b) of this section, the person is a legal resident of this state.

(b) The person is not a legal resident of this state, but is an attorney admitted to the practice of law in this state by the Ohio supreme court, and has the person's principal place of business or the person's primary practice in this state.

(3)(a) Except as provided in division (B)(3)(b) of this section, the person has submitted a criminal records check report completed within the preceding six months in accordance with section 147.022 of the Revised Code demonstrating that the applicant has not been convicted of or pleaded guilty or no contest to a disqualifying offense as determined in accordance with section 9.79 of the Revised Code.

(b) A person that is an attorney admitted to the practice of law in this state or a peace officer shall not be required to submit a criminal records check when applying to be appointed a notary public.

(4)(a) Except as provided in divisions (B)(4)(b) and (c) of this section, the person has successfully completed an educational program and passed a test administered by the entities authorized by the secretary of state as required under section 147.021 of the Revised Code.

(b) An attorney who is commissioned as a notary public in this state prior to September 20, 2019, shall not be required to complete an education program or pass a test as required in division (B)(4)(a) of this section.

(c) Any attorney who applies to become commissioned as a notary public in this state after September 20, 2019, shall not be required to pass a test as required in division (B)(4)(a) of this section, but shall be required to complete an education program required by that division.

(C)(1) A notary public shall be appointed and commissioned as a notary public for the state.

(2) The secretary of state may revoke a commission issued to a notary public upon the judgment of a court or presentation of satisfactory evidence of official misconduct or incapacity.
(3) If the secretary of state revokes a person's commission, the person is ineligible for reappointment to the office of notary public.
(D) The secretary of state shall oversee the processing of notary public applications and shall issue all notary public commissions. The secretary of state shall oversee the creation and maintenance of the online database of notaries public commissioned in this state pursuant to section 147.051 of the Revised Code. The secretary of state may perform all other duties as required by this section. The entities authorized by the secretary of state pursuant to section 147.021 or 147.63 of the Revised Code shall administer the educational program and required test or course of instruction and examination, as applicable.
(E) All submissions to the secretary of state for receiving and renewing commissions, or notifications made under section 147.05 of the Revised Code, shall be done electronically.
(F) The secretary of state shall appoint and commission as a notary public for the state an applicant who is commissioned or licensed as a notary public in another state in accordance with Chapter 4796. of the Revised Code.
(G) Before entering upon the duties of office, a notary public shall personally appear before a notary public or any officer authorized by law to administer oaths, who shall administer an oath of office to the notary public.

147.141 Prohibited Acts

(A) A notary public shall not do any of the following:

(1) Perform a notarial act with regard to a record or document executed by the notary;
(2) Notarize the notary's own signature;
(3) Take the notary's own deposition;
(4) Perform a notarial act if the notary has a conflict of interest with regard to the transaction in question;
(5) Certify that a document is either of the following:
    (a) An original document;
    (b) A true copy of another record.
(6) Use a name or initial in signing certificates other than that by which the notary public is commissioned;
(7) Sign notarial certificates using a facsimile signature stamp unless the notary public has a physical disability that limits or prohibits the notary's ability to make a written signature and unless the notary has first submitted written notice to the secretary of state with an example of the facsimile signature stamp;
(8) Affix the notary's signature to a blank form of an affidavit or certificate of acknowledgment and deliver that form to another person with the intent that it be used as an affidavit or acknowledgment;
(9) Take the acknowledgment of, or administer an oath or affirmation to, a person who the notary public knows to have been adjudicated mentally incompetent by a court of competent jurisdiction, if the acknowledgment or oath or affirmation necessitates the exercise of a right that has been removed;
(10) Notarize a signature on a document if it appears that the person is mentally incapable of understanding the nature and effect of the document at the time of notarization;
(11) Alter anything in a written instrument after it has been signed by anyone;

(12) Amend or alter a notarial certificate after the notarization is complete;
(13) Notarize a signature on a document if the document is incomplete or blank;
(14) Notarize a signature on a document if it appears that the signer may be unduly influenced or coerced so as to be restricted from or compromised in exercising the person's own free will when signing the document;
(15) Take an acknowledgment of execution in lieu of an oath or affirmation if an oath or affirmation is required;
(16) Execute a jurat without administering an oath or affirmation to the signer;
(17) Determine the validity of a power of attorney document or any other form designating a representative capacity, such as trustee, authorized officer, agent, personal representative, or guardian, unless that notary is an attorney licensed to practice law in this state;
(18) Charge or accept a fee greater than the amount prescribed by law.

(B) Division (A)(5) of this section shall not be construed as prohibiting a notary from notarizing the signature of a holder of a document on a written statement certifying that the document is a true copy of an original document.

(C) As used in this section, "conflict of interest" means either of the following:
(1) The notary has a direct financial or other interest in the transaction in question, excluding the fees authorized under this chapter.
(2) The notary is named, individually or as a grantor, grantee, mortgagor, mortgagee, trustor, trustee, beneficiary, vendor, lessor, or lessee, or as a party in some other capacity to the transaction.

147.142 Advertisement as immigration consultant'; other prohibited acts

(A) A notary public who is not a licensed attorney in this state shall not represent or advertise himself or herself as an immigration consultant or an expert in immigration matters.

(B) A notary public who is not a licensed attorney in this state shall not do any of the following:

(1) Provide any service that constitutes the unauthorized practice of law in violation of section 4705.07 of the Revised Code;

(2) State or imply that the notary is an attorney licensed to practice law in this state;

(3) Solicit or accept compensation to prepare documents for or otherwise represent the interest of another person in a judicial or administrative proceeding, including a proceeding relating to immigration to the United States, United States citizenship, or related matters;

(4) Solicit or accept compensation to obtain relief of any kind on behalf of another from any officer, agency, or employee of this state or of the United States;

(5) Use the phrase "notario" or "notario publico" to advertise the services of a notary public, whether by sign, pamphlet, stationery, or other written communication, or by radio, television, or other non-written communication. Ohio Rev. Code 147.142 [Effective 9/20/2019] Advertisement as immigration consultant; other prohibited acts.

Ordering Notary Public Supplies

Ohio Notary Services, LLC offers a wide selection of professional and affordable notary public supplies via our online store. To visit the online store, please visit www.becomeanohionotary.com. To receive more savings, we encourage you to take advantage of the combination packages and pricing.

Application Process

Step 1: Visit the Secretary of State's Notary website at https://www.sos.state.oh.us/notary. The application process includes a formal Bureau of Criminal Investigation criminal records check and details for obtaining the criminal records check can be found at the Secretary of State's Notary website.

Step 2: Visit the Ohio Notary Services, LLC website at www.becomeanohionotary.com and create an account. Then, select whether you want to take an in-person class and test or to do both online. Schedule an

in-person class/test or immediately begin the online process (Steps 1 and 2 can be done simultaneously; however, if the criminal records checks discloses any disqualifying offenses, you will not receive a refund of any of the fees you have paid to Ohio Notary Services, LLC).

Step 3: Attend the class or watch the online video. Once finished, you will take the test either in-person or online. Once you pass (you must answer at least 80% of the questions correctly), we'll provide you with what you need to upload to the Secretary of State's Notary Website to complete your application. The Secretary of State's office will send you your notary commission once it approves your application.

Step 4: Once you receive your notary commission from the Secretary of State's office, visit www.becomeanohionotary.com for all of your notary supplies needs.

Common Questions and Answers

1. After I have passed the test and received my commission certificate, where do I record it?

Effective September 20, 2019, you no longer need to record your commission with the clerk of courts in the county where you reside before you can perform notarial acts. However, effective April 4, 2025, before entering upon the duties of office, a notary public shall personally appear before a notary public or any officer authorized by law to administer oaths, who shall administer an oath of office to the notary public.

2. Once I am a notary public may I give legal advice concerning the documents I notarize?

No, a notary public commission is not a license to practice law or provide legal advice. Prosecution may

occur from engaging in the unauthorized practice of law.

3. Is my notary commission good only in the county in which I live?
No, a notary public commission is good statewide.

4. When notarizing a document, must a person personally appear before me?
Yes, a person must personally appear before you and show proper identification. A notary public can be personally liable for money damages for failing to take reasonable steps to verify the identity of persons seeking to have a document notarized.

5. What are the penalties for failing to follow the statutory duties and limitations of a notary public?
Penalties can include permanent removal from office, fines, and/or imprisonment. Please consult the penalties and violations section of this guidebook.

6. How do I go about changing my name on my commission if I have legally changed my name since I received it?
A notary public is responsible for notifying the Ohio Secretary of State to accomplish this.

7. How much may I charge for notarizing a document?
The Ohio Revised Code sets notary public fees. Please consult the fee section of this guidebook for the maximum fee amounts permitted by law.

8. How can I tell if a document requires an acknowledgment or a jurat?
To determine if a document requires an acknowledgment or jurat look to the wording of the notary clause. For example, if a document states

affirmed, subscribed and sworn, sworn to, or being duly sworn, it requires a jurat. If it states free act and deed or only mentions a signatory, it requires an acknowledgment. **PLEASE NOTE:** ***A jurat requires a notary public to administer an oath or affirmation and the signer must sign the document in the presence of the notary (e.g. a motor vehicle certificate of title contains jurats for both the seller and the buyer.)***

9. Can I take and certify copies of birth, marriage, or death certificates?
No, you should not notarize copies of birth, marriage, or death certificates.

10. Can I refuse a request to notarize?
Yes, as long as you are not refusing due to age, race, ethnicity, gender, national origin, disability, religion, political belief, lifestyle, or sexual orientation. Common examples where it is acceptable to say no are in situations of fraud or failure by the person to provide valid identification **PLEASE NOTE:** ***A notary public is not concerned with the content of a document. A notary is only concerned with validating that the document is complete or void of blank spaces.***

Notary Public Fees

The Ohio Revised Code sets the maximum fees that may be charged by a notary public. According to Ohio Revised Code Section 147.08 a notary public may charge up to $5.00 for any notarial act that is not an online notarization.

PLEASE NOTE:
(1) Notary public fees are not cumulative. The fee cannot be calculated on a per signature basis.

(2) A notary public also may charge a reasonable travel fee, as agreed to by the notary and the signer prior to the notarial act.
(3) A notary public who overcharges may have his/her commission permanently revoked.

Amendment of Notary Public Information

All updates and changes to your commission must be filed electronically by selecting "File Online" on the Secretary of State's Notary website. You must amend your commission within 30 days of a legal name change or address change. If you have misplaced your commission you may request a duplicate by submitting an affidavit stating that the original commission has been lost or destroyed. You also have the option to resign as a notary public by notifying the Secretary of State's office electronically.

Renewal of a Notary Public Commission

A non-attorney commission is valid for five (5) years. A commission may be revoked prior to the expiration of this term if the notary public violates certain legal provisions discussed later in this Study Guide.

Renewing a notary commission may begin up to 90 days in advance. Visit the Secretary of State's Notary website to begin the renewal process and then visit www.becominganohionotary.com to get started with the renewal class. If your notary commission expires before you submit the application for renewal to the Secretary of State, your commission will not be renewed and you will have to apply for a new notary commission.

Acknowledgments

An acknowledgment is declaration by an individual before a notary public that the individual has signed a record for the purpose stated in the record, and if the record is signed in a representative capacity, that the individual signed the record with proper authority and signed it as the act of the individual or entity identified in the record. Certain documents, such as deeds, mortgages, liens, powers of attorney, and certain other instruments, must be acknowledged in the presence of a notary public to be legally valid. However, certain documents are not required to be acknowledged or notarized, but are done so merely to insure their authenticity. It is not up to the notary to decide whether or not a document must be notarized; it is the notary's function to make sure a document, if it requires notarization, is properly notarized.

A person who wishes to acknowledge his/her signature on a document may bring the document to a notary and then acknowledge to the notary that the signature is his/her own and that he/she signed the instrument. The notary must either know the person signing or must obtain satisfactory evidence that he/she is the person described therein and who will be signing the document. The notary then signs his/her own name, certifying that the document was acknowledged in his/her presence.

Naturally, a notary cannot truthfully certify that a particular person appeared before him/her unless he/she is reasonably sure that the individual who signed the instrument is that person. If the signer is not known to the notary, proof to the reasonable satisfaction of the notary of the person's identity is required.

This proof is often satisfied by examination of a driver's license or another form of government identification that contains a photo or a signature, and is either current or expired less than three years. Proof may also include an oath or affirmation from a credible witness, see Ohio Rev. Code 147.50 for details.

PLEASE NOTE: the individual that is acknowledging his/her signature on a document must personally appear before you.

An acknowledgment may not, for example, be taken over the telephone, faxed, or emailed. Also, you cannot notarize a document submitted by a third party. Although a person may sign a document outside the presence of the notary, that person must personally appear before the notary to acknowledge that signature and provide proper identification for the notary to certify the acknowledgment.

In addition to taking an acknowledgment, the notary must complete the notarial certificate and affix the notarial seal. The seal may be one that stamps ink on the document or one that will emboss it. The name of the notary public may be on the seal, be printed, typewritten, or stamped in legible, printed letters near his/her signature of each document signed by him/her.

An acknowledgment is invalid if it does not show the official capacity (notary public) of the person taking it and the state of his/her commission.

Here is an example of a common form for taking and certifying an acknowledgment of an individual signing in his/her own right:

STATE OF OHIO)
) ss
COUNTY OF _____)

Before me, a Notary Public in and for said county and state, personally appeared the above named (John Doe) who acknowledged before me that he did sign the foregoing instrument and that the same is his FREE ACT and DEED.

IN TESTIMONY WHEREOF, I have hereunto affixed my name and official seal at _____, Ohio, this _____ day of _____, 20_____.

Signed _____
Name or Name Stamp (Printed or Typed)
Resident Summit County
Notary Public, State of Ohio
My Commission Expires
_____(Date)

(Seal)

Another example of acknowledgment, known as a "statutory short form of acknowledgment," is as follows:

STATE OF OHIO)
) ss
COUNTY OF _____)
The foregoing instrument was acknowledged before me this _____ (date) by _____ (name of person acknowledging).

Signed _____
Name or Stamp (Printed or Typed)
Resident Summit County
Notary Public, State of Ohio
My Commission Expires _____
(Date)
(Seal)

Additional Facts Regarding Acknowledgments

(A) A person must personally appear before the notary to acknowledge his/her signature on a document. He/she does not have to sign the document in the presence of the notary public. **PLEASE NOTE:** This is only applicable for taking and certifying acknowledgements. When a notary administers an oath or affirmation in connection with the execution of an affidavit, the affidavit must be signed in the presence of the notary.
(B) A notary cannot take and certify an acknowledgment to an instrument in which he/she has a conflict of interest; for example, a deed of real estate either to or from the notary. A notary may take and certify an acknowledgment of a relative, even a wife or husband if the notary has no interest in the transaction.

(C) A notary may act as a witness to, and notarize, the same instrument.
(D) A “signature by mark” is when a notary takes the acknowledgment of an individual who cannot sign his/her name. Such person executes the instrument by specifically intending to and then making a mark (ie: “X”)
(E) A notary merely acknowledges the “signature” on an instrument and need not concern him/herself with the specific contents of the instrument. This does not mean, however, that a notary may acknowledge a signature on a blank or partly blank piece of paper. You should insist that all blanks are completed prior to notarization. **PLEASE NOTE:** Blank spaces, not used in a legal instrument, should have a line in ink drawn through them so that no one can add to the terms of the instrument after it is signed and notarized.
(F) A notary may take an acknowledgment only within the state of Ohio. The document may, however, refer to property or other matters outside of the state of Ohio. For example, a notary may take an acknowledgment on a deed for real estate located in New York if the person signing the deed acknowledges his/her signature before a notary while in the state of Ohio.
(G) A person may not always be acknowledging an instrument in his/her own right, but may rather be acknowledging an instrument which he/she signed on behalf of a corporation or partnership, as the holder of a power of attorney, or as a public officer, trustee, or personal representative.

Administering Oaths

An oath, by definition, is a solemn, spoken declaration, usually to God or a Supreme Being, by a person before an officer authorized by law to take oaths (such as a notary) that what he/she has said or is about to say is true (as when a witness takes the stand in a courtroom) or a promise that he/she will faithfully perform certain acts (as when public officers are "sworn in.") When administering an oath, the notary or other authorized officer may ask the oath-taker to raise his/her hand and/or place one hand on a Bible or other religious text while raising the other to pledge. While these ceremonial formalities are seldom required by law, they have the value of impressing on the oath-taker the significance of his/her actions.

EXAMPLE: "(Please raise your right hand); Do you (solemnly) swear to and subscribe before me that the statements in this document are true to the best of your knowledge, information and belief, so help you God?"

Affirmation

Some individuals, for religious or personal reasons, decline to take an oath because of the appeal to God or a high power. The law of Ohio holds that the term "oath" includes an "affirmation" which is a spoken pledge or solemn declaration made on the individual's personal honor with no reference to God or a Supreme Being.

EXAMPLE: "Do you affirm to and subscribe before me that the statements in this document are true to the best of your knowledge, information, and belief?" (Both you and the signer may raise your right hands to lend gravity to the affirmation, but this is optional.)

PLEASE NOTE: When taking and certifying an affidavit, a notary must administer either (A) an oath or (B) an affirmation and, in either case, the signer must clearly state "Yes" or "I do". Failure to administer an oath or affirmation can result in the notary losing his/her commision.

Affidavit

An affidavit is a written statement of facts, the truth of which is sworn to before a person authorized to administer oaths, and followed by an official statement of the individual taking the oath that the affidavit was signed and sworn to, or affirmed, in his/her presence (this statement is known as a "jurat.") Here is an example of a common form for taking and certifying an affidavit, but please note the Ohio Revised Code specifies specific forms based on the individual/entity signing:

STATE OF OHIO)
) ss
COUNTY OF _____)

Before me, a Notary Public, in and for said county, personally, appeared _____ (name of person), who swore to and subscribed before me that _____ (listed facts that the person is putting in the affidavit].

IN TESTIMONY WHEREOF, I have hereunto affixed my name and official seal at _____, Ohio, this _____ day of _____, 20_____.

Signed _____
Name or Name Stamp (Printed or Typed)
Resident Summit County
Notary Public, State of Ohio
My Commission Expires
_____(Date)

(Seal)

Steps for Taking & Certifying an Affidavit

Step 1: Verify the identity of the party or parties.
Step 2: Validate that the document is complete and void of blank spaces.
Step 3: Administer either (A) an oath or (B) an affirmation.
Step 4: Have the affiant sign the document. If the document is already signed; have the affiant strike the signature and re-sign.

Step 5: Complete and execute the certification on the instrument, also known as a jurat, below the signature of the affiant.

PLEASE NOTE: As a best practice, a notary should keep and maintain a notary journal. These are available for purchase from Ohio Notary Services, LLC.

Taking and Certifying Depositions

In the state of Ohio, the testimony of witnesses for a trial may be taken outside of the courtroom, before a notary public. A deposition is the testimony of a witness following the administration of an oath or affirmation. The testimony is transcribed, word for word, into written form. It may, under certain circumstances, be introduced into court, for example, if the witness later dies or is unable to attend because of age, sickness, infirmity, or imprisonment. Although Ohio law authorizes every notary public to take and certify depositions, usually only trained court reporters are called upon to do so.

PLEASE NOTE: It is not intended here to give a full discussion of depositions, but rather merely to acquaint the notary with them generally. If the notary is ever requested to take a deposition or issue a subpoena, he/she should consult an attorney before exercising this power.

Violations and Penalties

The Ohio Revised Code (O.R.C.) provides that a notary public may be removed from office temporarily or permanently, fined by the state of Ohio, and imprisoned, depending on the violation involved. The

following are summarizations of violations and their corresponding penalties:

O.R.C. 147.01: The secretary of state may revoke a commission issued to a notary public upon the judgment of a court or presentation of satisfactory evidence of official misconduct or incapacity. If the secretary of state revokes a person's commission, the person is ineligible for reappointment to the office of notary public.

O.R.C. 147.032: If the secretary of state believes that a violation of this chapter has occurred (as well as from a signed complaint from any person), the secretary may investigate such violations. Violation of Chapter 147. **Penalty**: after investigating the secretary of state may do any of the following:

(1) revoke the notary public's commission;
(2) suspend the notary public's commission for a specified period of time or until fulfillment of a condition, such as retraining, or both;
(3) Issue a letter of admonition that shall be place in the notary public's record.

A notary MUST cooperate fully with any investigation; if not, the secretary will revoke the notary's commission.

The secretary of state may also revoke the commission of a notary public for any act or omission by the notary public that demonstrates the notary public lacks the requisite honesty, integrity, competence, or reliability to act as a notary public, including any of the following:

(1) Failure to administer an oath or affirmation when executing a jurat;
(2) Performing a notarial act without requiring personal appearance, except in the case of an online notary public performing an online notarization in

accordance with sections 147.60 to 147.66 of the Revised Code;

(3) Fraudulent, dishonest, or deceitful misstatement or omission on a notarial certificate.

O.R.C. 147.11: Notary public acting after commission expires. **Penalty**: Forfeit not more than five hundred dollars ($500), to be recovered by an action in the name of the state. Such act shall render the person ineligible for reappointment.

Civil Liability of a Notary Public

Notaries public are officers of the state and must execute the statutory duties entrusted to them with reasonable prudence. However, notaries are not attorneys and are neither expected nor required to possess extensive legal knowledge or to guarantee the validity of documents.

Additionally, notaries are not required to guarantee the identity of the person appearing before them. A notary is, however, required to take reasonable precautions to verify the person's identity either through a picture identification (driver's license, passport, government, state, or inmate identification card) or verification by a third person who the notary knows and trusts.

In the case of Keck v Keck, (1977 5th Dist.) 54 Ohio App.2d 128, a notary was required to pay money damages to a person injured by the notary's negligent acknowledgment of a signature on an automobile title.

In this case, Mrs. Keck appeared before a notary public and stated she wanted to sign her husband's name to the car title to transfer title of the car to her name. Mrs.

Keck said that her husband was ill, but he wanted the title transferred. The notary properly refused to allow Mrs. Keck to sign her husband's name and told her that she would have to bring her husband in or a notary would have to go to their house. Mrs. Keck left but returned later with a person who stated he was Mr. Keck. The notary witnessed and notarized the man's signature without asking for any identification.

The court concluded that a reasonable person in the position of that notary public should have at least been suspicious when Mrs. Keck reappeared with her "husband" after telling the notary that Mr. Keck was ill. The obvious inference was that Mr. Keck was too ill to accompany his wife. The court ruled that the notary had the responsibility under Ohio Revised Code Section 147.53 to ask for "satisfactory evidence" that the man was indeed Mr. Keck. The court of appeals held that the notary's failure to obtain evidence other than the man's representation that he was indeed Mr. Keck was negligence as a matter of law, and ordered the notary to pay Mr. Keck the amount of money he lost when his wife subsequently sold the car.

As the Keck case illustrates, a notary must take reasonable precautions to ascertain the identity of the person acknowledging a signature or signing an affidavit. A notary need not prove the identity of the person nor is a notary liable if a person presents false or stolen identification unless suspicious circumstances would put a reasonable person on guard that the identification presented was questionable.

REMOTE ONLINE NOTARY

Senate Bill 263 which was signed by Governor Kasich in December 2018 is what established the concept of online notarial acts in Ohio Law. Specifically, Senate Bill 263 altered the Ohio Revised Code through sections 147.60 – 147.66. In Section 147.62 the Ohio Secretary of State is instructed to adopt rules under the Revised Code necessary to implement, set, and maintain standards for online notarizations and online notaries public. In particular, the secretary was told that the rules shall address, at a minimum, all of the following:

(1) The standards, procedures, application forms, and fees for the authorization of a notary public to act as an online notary public;
(2) The means of performing online notarizations;
(3) Standards for the technology to be used in online notarizations;
(4) Standards for remote presentation, credential analysis, and identity proofing;
(5) Standards for the retention of records relating to online notarizations;
(6) The modification of forms of notarial certificates for any notarial act that is an online notarization;
(7) Standards and requirements for the termination of a notary public's authorization to perform online notarizations.

DEFINITIONS

Some of these words and phrases have multiple meanings as they relate to the more traditional, paper-based notarizations, we will only be focusing on the definitions they relate to online notarial acts.

Appear in Person - being in a different location as another person and interacting with that individual by means of live two-way, audio-video communication.

Credential Analysis - a process or service operating according to standards adopted by the secretary of state under section 147.62 of the Revised Code through which a third person affirms the validity of a government-issued identification credential through review of public and proprietary data sources. Credential analysis must be performed by a reputable third person who has provided reasonable evidence to the online notary public of the person's ability to satisfy the requirements of Chapter 147 of the Ohio Revised Code and this rule.

Credential analysis must utilize public or private data sources to confirm the validity of an identification credential and must, at a minimum:

1) use automated software processes to aid the online notary public in verifying the identity of a remotely located individual;
2) ensure that the identification credential passes an authenticity test, consistent with sound commercial practices that:
    a) use appropriate technologies to confirm the integrity of visual, physical, or cryptographic security features;
    b) use appropriate technologies to confirm that the identification credential is not fraudulent or inappropriately modified;
    c) use information held or published by the issuing source or an authoritative source, as available, to confirm the validity of identification credential details; and

d) provide output of the authenticity test to the online notary public;

3) enable the online notary public to visually compare for consistency:
   a) the information and photograph on the presented credential, and
   b) the remotely located individual as viewed by the online notary public in real time through communication technology;
4) require a government-issued identification credential that:
   a) is an unexpired government-issued identification credential that contains the photograph and signature of the individual; and
   b) may be imaged, photographed, and video recorded under applicable state and federal law; and
   c) can be subjected to credential analysis.
5) include an image capture procedure that confirms that:
   a) the remotely located individual is in possession of the credential at the time of the notarial act;
   b) credential images submitted for credential analysis have not been manipulated; and
   c) credential images match the credential in the possession of the remotely located individual; and
6) require the captured image of the identification credential to:
   a) be of sufficient image resolution to perform credential analysis in accordance with the requirements of this subsection;
   b) be of sufficient image resolution to enable visual inspection of the credential by the notary public; and
   c) include all images necessary to perform visual inspection and credential analysis in

accordance with the requirements of this subsection, including the identity page of any passport and the front and back images of any identification card.

Dynamic Knowledge-Based Authentication - a form of identity proofing as defined by division (G) of section 147.60 of the Revised Code that is based on a set of questions formulated from public or private data sources for which the principal has not provided a prior answer.

Electronic Document - information that is created, generated, sent, communicated, received, or stored in an electronic medium and is retrievable in perceivable form.

Electronic Journal - the chronological record of notarizations maintained by a notary public in an electronic format which shall be accessible by a password or other secure

means of authentication and be in a tamper-evident electronic format complying with the rules of the secretary of state

Electronic Notarial Act - a notarial act defined in section 147.51 of the Revised Code that is performed using an official electronic signature and seal on an electronic document, by an individual commissioned as a notary public pursuant to section 147.01 of the Revised Code.

Electronic Seal - information within a notarized electronic document to which all of the following apply:

1) The information confirms the notary public's name, jurisdiction, and commission expiration date.
2) The information generally corresponds to the contents, layout, and format of the notary public's seal for use on paper documents, as required under section 147.04 of the Revised Code.

Electronic Signature - an electronic sound, symbol, or process attached to or logically associated with an electronic document and executed or adopted by a natural person with the intent to sign the electronic document.

Exclusive Control means accessible by and attributable solely to the notary public to the exclusion of all other persons and entities, either through being in the direct physical custody of the notary public or through being secured with one or more biometric password, token or other authentication technologies.

Identity Proofing - a process or service operating according to standards adopted by the secretary of state under section 147.62 of the Revised Code through which a third person affirms the identity of a natural person through the review of personal information from public and proprietary data sources. Identity proofing must be performed by a reputable third person who has provided reasonable evidence to the online notary public of the person’s ability to satisfy the requirements of Chapter 147 of the Ohio Revised Code and this rule.

1) Identity proofing shall be performed by means of a knowledge-based authentication that meets the following requirements:
   a) each remotely located individual must answer a quiz consisting of a minimum of five questions related to the remotely located individual's personal history or identity, formulated from public or private data sources;
   b) each question must have a minimum of five possible answer choices;
   c) at least 80% of the questions must be answered correctly;
   d) all questions must be answered within two minutes;
   e) if the remotely located individual fails the first attempt, the individual may retake the quiz two times within 48 hours;
   f) during a retake of the quiz, a minimum of 40% of the prior questions must be replaced;
   g) if the remotely located individual fails the second attempt, the individual is not permitted to retry with the same notary or the same third person providing the identity proofing service within 24 hours of the second failed attempt; and
   h) the online notary public must not be able to see or record the questions or answers.

Notary Public - an individual commissioned by the secretary of state under section 147.01 of the Revised Code to perform notarial acts, but a notary public does not have the authority to perform online notarizations unless also authorized by the secretary of state to perform an online notarization,

Official Electronic Signature - the electronic signature used by a notary public commissioned pursuant to section 147.01 of the Revised Code; and the electronic signature used by a notary public who is authorized as an online notary public pursuant to section 147.63 of the Revised Code.

Online Notarization - a notarial act performed by means of live two-way video and audio conference technology that conforms to the standards adopted by the secretary of state under

section 147.62 of the Revised Code.

Online Notarization System - a set of applications, programs, hardware, software, or technology designed to enable a notary public to perform online notarial acts.

Online Notary Public - a notary public who has been duly appointed and commissioned under section 147.01 of the Revised Code and has received authorization by the secretary of state under section 147.63 of the Revised Code to perform online notarizations.

Principal - a natural person whose electronic signature is notarized in an online notarization, or the natural person taking an oath or affirmation from the online notary public. "Principal" does not include a natural person taking an oath or giving an affirmation in the capacity of a witness for the online notarization.

Real Time - the actual span of uninterrupted, simultaneous communication during which all parts of

an online notarial act using audio-video communication occur.

Record includes; an entry in a journal maintained by an online notary public pursuant to section 147.65 of the Revised Code. It also means the audio-video recording required in section 147.65(D)(3) of the Revised Code.

Remote Presentation – a transmission to an online notary public through live two-way video and audio conference technology of an image of a government-issued identification credential that is of sufficient quality to enable the online notary public to identify the principal seeking the online notary public's services and to perform credential analysis.

APPLICATION PROCESS

Applicants must be a current notary public or simultaneously applying to become one. Applicants must also be an Ohio-resident and using the same under which they are commissioned a traditional notary public. Applications filed with the secretary of state must include:

- The name of the online notarization system, technology or vendor of the platform that the applicant intends to use to perform online notarizations;
- A certification that the applicant will comply with the rules adopted under section 147.62 of the Revised Code;
- An electronic mail address of the applicant;

- If applicable, any decrypting instructions, keys, codes or software necessary for the secretary of state to use to read the application;
- Evidence of successful completion of at least two hours of education and testing provided by the authorized provider.
- A disclosure of any and all license or commission revocations or other professional disciplinary actions taken against the applicant; and
- A fee of $20 which must be paid by credit card.

Should an applicant fail the test required by section 147.63 of the Revised Code, the applicant may apply to retake the exam not sooner than 30 days following the date of the applicant's most recent examination, and no later than six months following date of completion of the education program. Should the applicant fail the exam a second time, the applicant must re-start the process with a new application.

For attorneys, licensed to practice law in the state of Ohio, the authorization to perform online notarizations shall be valid for a period of five years or until the attorney's term of office as a notary public ends, whichever is earlier. For notaries who are not licensed to practice law in the state of Ohio, their authorization to perform online notarizations shall expire when their notary public commission expires.

If, at any time, the notary public changes either the online notarization system or technology that the notary public intends to use to perform online notarizations, then the notary public shall inform the secretary of state of this intent. An online notary public may use more than one online notarization system or technology, including an online notarization

system not previously reported to the secretary of state. An online notary must report, to the secretary of state, use of any previously unreported online notarization system or technology within five days after the date the unreported technology system was first used. If the secretary of state determines that the new hardware or software does not meet the standards prescribed in rules under section 147.62 of the Revised Code, then the secretary may give notice to the notary public to obtain acceptable hardware or software and inform the secretary of state of the new acceptable technology to be used within 30 days. If the notary public fails to meet the standards, then the secretary of state may suspend or revoke the notary public's authority to perform online notarizations.

RENEWING THE ONLINE NOTARY AUTHORIZATION

A non-attorney notary public may apply to renew the authorization to perform online notarizations no earlier than three months prior to expiration of the applicant's **notary commission**. An attorney online notary public may apply to renew the authorization to perform online notarizations no earlier than three months prior to expiration of the **online notary authorization.**

The renewing notary public must electronically submit an application to the secretary of state. An application for renewal shall include evidence of successful completion of at least one hour of education as provided by the authorized provider. The renewing notary public must update any changes to the information provided regarding the applicant's email address, the name or description of technology being used in performing online

notarizations, and a disclosure of any and all license or commission revocations or other formal professional disciplinary actions pending or concluded against the applicant. Also, if applicable, any decrypting instructions, keys, codes or software necessary for the secretary of state to use to read the application must be submitted along with a fee of twenty dollars, which must be paid by credit card.

The fee for the renewal course is $160. The renewing notary public must complete the required continuing education no earlier than twelve (12) months prior to the expiration of the online authorization.

If renewing notaries do not complete the renewal process by the expiration of their commission and/or authorization, they must begin the process as if they are a new applicant. There isn't a grace period for late applications.

ELECTRONIC NOTARIAL ACTS

Technological Requirements

Two-way live audio video conferencing technology

1) An online notary public shall do all of the following:
   a) Take reasonable steps to ensure the integrity, security, and authenticity of online notarizations;
   b) Take reasonable steps to ensure that the two-way, audio-video communication used in an online notarization is secure from unauthorized interception;
2) The online notarization system used must meet the following criteria:
   a) The persons communicating must simultaneously see and speak to one another.

b) The signal transmission must be live, real time.
c) The signal transmission must be secure from interception or access by anyone other than the persons communicating.
d) The technology must provide sufficient audio clarity and video resolution to enable the notary to communicate with the signer and utilize the permissible signer identification methods.
e) The system must provide confirmation that the electronic document presented is the same as the electronic document notarized.
f) Allow for the affixation of the notarial certificate, signature and seal.
g) Allow for viewing the notarial certificate, signature and seal.
h) Provide a method for determining if the electronic document has been altered after the electronic notarial seal has been affixed and the electronic notarial act has been completed.
i) Provide a method of generating a paper copy of the document including the notarial certificate, signature and seal and any other document associated with the execution of the notarial act.

2) If the signer or online notary public must exit the audio-video communication session, the audio-video communication link is broken, or the resolution or quality of the transmission becomes such that the electronic notary public believes the process has been compromised and cannot be completed, the identity authentication process and any incomplete online notarial acts must be started from the beginning.

The technology used to attach an electronic signature to a document shall allow the electronic signature to be:

1) Attributed or uniquely linked to the notary public;

2) Capable of independent verification;
3) Retained under the notary public's exclusive control; and
4) Linked to the electronic document to which it relates in such a manner that any subsequent change of the electronic document is detectable.

Electronic Seal

An electronic seal shall consist of the following in the electronic document:

1) The notary public's name as shown on the notary's commission;
2) The notary public's commission expiration date;
3) An electronic seal may consist of the coat of arms of the state within a circle that is at least three-quarters of an inch, but not larger than one inch in diameter surrounded by the words "electronic notary public," "electronic notary seal" or other words to that effect, and the words "State of Ohio."

An online notary public shall not allow another person to use the online notary public's electronic journal, official electronic signature, or electronic seal. In addition, attaching the electronic signature and seal to the notarial certificate of an electronic document must be done in a manner that is capable of independent verification and renders any subsequent change or modification to the electronic document evident.

THINGS TO KNOW

Original Document - An electronic document notarized through an online notarization shall be considered an original document.

An online notary public may perform online notarizations only if both of the following conditions are met:

1) The online notary public is a resident of this state.
2) The online notary public is located within the geographical boundaries of this state at the time of the online notarization.

Signer/Principal Doesn't Have to be In Ohio - A notary public may perform an online notarization by means of audio-video communication in compliance with this act and any other rules adopted by the secretary of state for any principal who is located within the territory of the United States.

Signer/Principal Doesn't Have to be In the United States – A notary public may perform an online notarization for a principal located outside the territory of the United States only if both of the following conditions are met:

a) The act is not known by the notary public to be prohibited in the jurisdiction in which the principal is physically located at the time of the act.
b) The record meets any of the following:
    i) Is part of, or pertains to, a matter that is to be filed with or is before a court, governmental entity, or other entity located in the territorial jurisdiction of the United States;
    ii) Involves real or personal property located in the territorial jurisdiction of the United States;
    iii) Is part of, or pertains to, a transaction substantially connected with the United States.

IDENTITY DETERMINATION

An online notary public shall determine from personal knowledge or satisfactory evidence of identity that the principal appearing before the notary by means of live audio-video communication is the individual that he or she purports to be AT THE TIME THE SIGNATURE IS TAKEN.

An online notary public has satisfactory evidence of identity if the notary can identify the individual who appears in person before the notary by means of audio-video communication based on either of the following:

1) Method One
   a) The online notary public's personal knowledge of the individual;
2) Method Two
   a) All of the following:
      i) Remote presentation by the principal of an unexpired government-issued identification credential, including a passport or driver's license, that contains the signature and photograph of the principal;
      ii) Credential analysis of the identification credentials provided;
      iii) Identity proofing of the principal.
3) Method Three
   a) Oath or affirmation by one or more credible witnesses who appear in person before the notary and who can be identified by either personal knowledge or all of the following:
      i) Presentation of an unexpired government-issued identification credential, including a passport or driver's license, that contains the signature and photograph of the witness;
      ii) Credential analysis of the identification credentials provided;
      iii) Identity proofing of the witness.

OBLIGATIONS TO REFUSE TO CONDUCT AN ONLINE NOTARIAL ACT

The online notary public **shall refuse** to perform an online notarization if:

1) the online notary public is unable to verify the identity of the principal;
2) the online notary public is unable to verify the security of the two way audio visual transmission;
3) the signature of the principal cannot be attached to the electronic document; or
4) the online notarization system or technology cannot render the notarial act tamper-evident.

ELECTRONIC JOURNAL

1) What to record?
   a) The date and time
   b) Type of act
   c) What to record
   d) The date and time
   e) Type of act
   f) What kind of document
   g) Electronic signatures
   h) Full name and address of each principal
   i) How the principal was identified
   j) Where notarized
   k) Description of the online notarization system
   l) Fee
   m) Location of the principal
   n) Recording
   o) Do not record a social security number

RECORDINGS

Online notarizations must be recorded.

System Specifics

1) Should a notary public use a system to store the electronic journal, then the system must:
   a) Allow entries to be made, viewed, printed out and copied by an online notary public only after access is obtained by at least one factor of authentication such as a password, biometric verification, token, or other form of authentication.
   b) Include a backup system to provide a duplicate electronic journal of notarial acts as a precaution in the event of loss of the original record.
   c) Prevent an entry to be deleted or altered.
   d) Allow the notary public exclusive control of the electronic journal and the recording of the electronic notarial act using audio-visual communication, subject to the authorized access granted by the notary.

Safeguards

1) Safeguard the electronic journal and all other notarial records by doing all of the following:
   a) Not allowing the electronic journal to be used by another notary;
   b) Creating the audio-video recording in a tamper-evident electronic format complying with the rules of the secretary of state adopted under section 147.62 of the Revised Code;
   c) Protecting the electronic journal and audio-video recordings from unauthorized use.
   d) Surrender or destroy the electronic journal and all other notarial records only by rule of law, by court order, or at the direction of the secretary of state;
2) A third party keeping and storing electronic journals for online notaries public shall immediately, upon discovery, notify the secretary of state, an appropriate law enforcement agency, and any

affected online notaries public of the unauthorized access, modification, transfer, duplication, loss or use of any electronic journals in the third party's possession or control. If notice has not already been given by the third party, the online notary public shall immediately, upon discovery, notify an appropriate law enforcement agency and the secretary of state of the unauthorized access, modification, transfer, duplication, loss or use of the online notary public's electronic journal, official electronic signature, or electronic seal.

Employee Control – Not Employer

1) Do not surrender the electronic journal to an employer upon termination of employment.
2) An employer shall not retain the electronic journal of an employee who is an online notary public when the notary's employment ceases.
3) an online notary public may make an agreement with a current or former employer pursuant to use them as an approved a repository if the secretary of state agrees it meets all applicable repository requirements

How Long to Maintain?

An electronic journal and the audio-video recordings required by notary law shall be maintained by the online notary public during the term of the online notary public's authorization to perform online notarizations.

Upon resignation, revocation, or expiration without renewal of an online notary public commission, the online notary public shall transmit the electronic journal to the secretary of

state or to a repository approved by the secretary of state. This requirement does not apply to electronic journals that, as of the date of the resignation or expiration, were no longer kept in

accordance with division (F) of section 147.65 of the Revised Code. If the electronic journal is transmitted to a repository, the online notary public shall inform the secretary of state where the

journal is located during this period.

Upon death or adjudicated incompetence of a current or former notary public, the executor or administrator of the online notary public's estate, the notary's guardian, or any other

person knowingly in possession of the online notary public's electronic journal, shall transmit the journal to the secretary of state or to a repository approved by the secretary of state. The online notary public, the notary's personal representative or guardian, or the administrator or the executor of the notary's estate shall provide access instructions to the secretary of state for any electronic journal maintained or stored by the online notary public, upon commission resignation, revocation, or expiration without renewal, or upon the death or adjudicated incompetence of the online notary public, if that person is in possession of such instructions.

The secretary of state or repository receiving a journal shall maintain the journal for a period of ten years.

If the notary public renews the notary public's authorization to conduct online notarizations the notary public shall, beginning on the date the

renewal is effective, maintain a new electronic journal.

Who Is Allowed to See the Journal?

The journal may be examined and copied without restriction by a law enforcement officer in the course of an official investigation, subpoenaed by court order or examined, copied, surrendered or otherwise accessed at the direction of the secretary of state.

In addition, any person may inspect or request a copy of an entry or entries in the online notary public's journal, provided that all of the following are met:

1. The person specifies the month, year, type of record, and name of the principal for the notarial act, in a signed tangible or electronic request.
2. The notary does not surrender possession or control of the journal.
3. The person is shown or given a copy of only the entry or entries specified.
4. A separate new entry is made in the journal, explaining the circumstances of the request and noting any related act of copy certification by the online notary public.

Exceptions

- An online notary public may certify copies made from the online notary public's electronic journal.
- An online notary public who has a reasonable and explainable belief that a person requesting information from the notary's journal has a criminal or other inappropriate purpose may deny access to any entry or entries.

Attorneys and Their Journals

An attorney authorized to conduct online notarizations shall only allow inspection, or provide copies, of an entry or entries in the attorney's journal if the requesting party was a principal in the transaction or transactions to which the journal entry or entries apply or if the requesting party is acting on a principal's behalf. An attorney may deny a request to inspect or receive copies of a journal entry based on attorney-client privilege.

The secretary of state, or a repository approved by the secretary of state, shall only allow inspection, or provide copies of, an entry or entries in a journal deposited with the secretary or the repository by an attorney authorized to conduct online notarizations if the requesting party was a principal in the transaction or transactions to which the journal entry or entries apply or if the requesting party is acting on a principal's behalf.

An attorney authorized to conduct online notarizations may object to the examination, or copying, of the attorney's journal based on attorney-client privilege.

FEES FOR THE ONLINE NOTARY ACT

A notary public is not required to charge for the services provided, however, the notary public may charge a fee for a notarial act in an amount not to exceed $30.00 per notarial act for an online notarization. The fees charged shall not be

calculated on a per signature basis, just as in traditional notary work. Additionally, remote online notaries may charge a $10 technology fee per session.

COMPLAINTS AND DISCIPLINE

Just as in traditional paper-based notary rules, the secretary of state is responsible for investigating written complaints about notaries with online authorization. The process, etc. is the same.

Upon receiving a signed complaint, or if the secretary of state has a **reasonable basis to believe that a violation** of Chapter 147 of the Ohio Revised Code has occurred, then the secretary of state shall **designate an authorized agent to investigate the violation.**

After an investigation, the authorized agent shall forward the agent's findings to the secretary of state, the person who filed the complaint and the notary public named in the complaint (the "respondent"). If, upon reviewing the agent's findings, **the secretary of state determines a violation of** Chapter 147 of the Ohio Revised Code may have, or may occur, and wants to take action with respect to such possible violation, it shall send a **written notice of such determination to the person who filed the complaint and the respondent**. The respondent shall have fourteen **(14) days to request a hearing from the** secretary of state. The request must be sent to the secretary of state with a copy to the director of business services of the secretary of state. The secretary of state shall schedule the hearing within fifteen (15) days after receiving the request for a

hearing and shall promptly notify the respondent of such date.

Once a hearing is scheduled, the secretary of state shall appoint a hearing officer. The hearing officer must be admitted to the practice of law in Ohio and be knowledgeable of Ohio notary laws. The hearing date may be continued by the hearing officer, at the request of the secretary of state or the request of the respondent. The hearing shall be conducted in accordance with Chapter 119 of the Revised Code.

Prior to the hearing, the respondent shall have the opportunity to answer the complaint by filing a written answer with the secretary of state. Any subpoenas for the hearing shall be requested from the hearing officer for issuance by the secretary of state. The hearing officer may receive evidence from the secretary of state and the respondent. The respondent may be represented by counsel; however, counsel is not required. A stenographic transcript of the oral testimony at the hearing shall be made.

Following the hearing, the **hearing officer shall issue a report and recommendation to the secretary of state** within fourteen (14) days after completion of the hearing. A copy of this written report shall, at the time it is submitted to the secretary of state, be forwarded by electronic means and certified mail to the respondent or his or her counsel. If a violation of Chapter 147 of the Revised Code is found, the hearing officer may recommend the following:

1. no action be taken;
2. revoke the notary public's commission;

3. suspend the notary public's commission for a specified period of time or until fulfillment of a condition, such as retraining, or both; or
4. issue a letter of admonition to the notary public that shall be placed in the notary public's record.

The respondent may file with the secretary of state written objections to the hearing officer's report within ten days of the date of the respondent's receipt of the report. The secretary of state shall render a decision within twenty (20) days after the receipt of the hearing officer's recommendation. The secretary of state shall send such decision to the respondent or his or her counsel by certified mail.

If a hearing is not timely requested by the respondent, the secretary of state may take the following action:

1. revoke the notary public's commission;
2. suspend the notary public's commission for a specified period of time or until fulfillment of a condition, such as retraining, or both; or
3. issue a letter of admonition to the notary public that shall be placed in the notary public's record.

The respondent may appeal an adverse decision of the secretary of state under section 119.12 of the Revised Code.

PLEASE NOTE: Chapter 147 of the Ohio Revised Code governing notary publics may change from time to time. Stay up to date by reading the law.

March 2025

Notes

THE GREAT SEAL OF THE STATE OF OHIO

Becoming an Ohio Notary

Introduction

- Welcome and Thank You
- Who is Ohio Notary Services?
- Purpose of this Education

Ohio Notary Services

Notary Law Updates

- 2019 Notary Revisions

Ohio Notary Services

Notary Law Updates

- 2025 Notary Revisions

Ohio Notary Services

Course Content

- Education Content
  - Notary Public 101

Ohio Notary Services

Course Content

- Education Content
  - Dos and Don'ts for Notaries Public

Ohio Notary Services

Course Content

- Education Content
  - Dos and Don'ts for Attorney Notaries

Ohio Notary Services

Course Content

- Education Content
  - Notarizing a Vehicle Title

Ohio Notary Services

Course Content

- Education Content
  - Sample Test Questions

Ohio Notary Services

Course Content

- Education Content
  - Next Steps

Ohio Notary Services

Study Guide

- Ohio Notary Services publishes a study guide for education/testing customers.

Summary

This course provides the required three hours of education for new applicants desiring to become an Ohio Notary Public.

ONS provides a Notary Public Study Guide with program purchase.

Ohio Notary Services

Hints for Watching this Video

- Stopping the Video
- Re-watching the Video
- Do NOT Click Complete UNTIL You are Done
- Allow 60 Uninterrupted Minutes to Take the Test
- Secure/Stable Internet Connection
- Using Mobile Phones for the Test

Ohio Notary Services

The End

- This Concludes the Introduction

Ohio Notary Services

Notaries Public 101

What is a Notary Public?

A person appointed and commissioned to serve the citizens as an impartial witness to transactions

Ohio Notary Services

Impartiality

Impartiality means that notaries have "no interest" in the document content, other than ensuring it is complete. Scan, do not read the document to ensure it is complete. If there are any blank spaces, the signer must either complete the areas or line through them

Ohio Notary Services

Ohio Law

- Ohio Constitution
- Ohio Revised Code
- Ohio Administrative Code

Ohio Notary Services

The Ohio Secretary of State

- Processing of notary public applications
- Issue all notary public commissions
- Maintains an online database of notaries public
- Authorizes educational providers
- Investigate possible violations and take disciplinary action

Ohio Notary Services

Notaries Public Database

Ohio Notary Services

Record-Keeping

- Change of name
- Change of address
- Notice of resignation
- Or conviction of disqualifying offense

Ohio Notary Services

Duplicate Commission

- Upon receipt of a fee of two dollars and submission of the electronic duplicate commission request form, a duplicate commission as notary public shall be issued by the secretary of state.
- Upon receipt of a fee of two dollars and submission of the electronic amendment form for a name change under division (B) of section 147.05 of the Revised Code, the secretary of state shall issue a duplicate commission as a notary public

Ohio Notary Services

Certified Copy of a Commission

Upon application, the Ohio Secretary of State can make a certified copy of a notary public commission and the endorsements on the commission

Ohio Notary Services

Certified Copy Fee

For each certified copy of a notary public commission, the Ohio Secretary of State is entitled to receive a fee of five ($5) dollars

Ohio Notary Services

Qualifications

- Attained the age of 18 years
- A legal resident of Ohio
- Submit a criminal records check report completed within the proceeding six months
- Successfully completed an educational program and passed a test

Ohio Notary Services

Exception One

An attorney admitted to the practice of law in Ohio by the Supreme Court of Ohio, and has the person's principal place of business or has the person's primary practice in Ohio they meet the qualification of residency

Ohio Notary Services

Exception Two

A person that is an attorney admitted to the practice of law in Ohio or a peace officer is not required to submit a criminal records check when applying to be appointed a notary public

Ohio Notary Services

Exception Three

- An attorney who is commissioned as a notary public in this state prior to September 20, 2019, is not required to complete an educational program or pass a test
- Any attorney who applies to become commissioned as a notary public in Ohio after September 20, 2019, is not required to pass a test, but is required to complete an educational program

Ohio Notary Services

Attorney Qualifications

- An attorney admitted to the practice of law in Ohio by the Supreme Court of Ohio
  - A principal place of business or the person's primary practice in Ohio
- Complete an education program

Ohio Notary Services

Criminal Records Check

To complete a criminal records check a person must:

- Pay a prescribed fee
- Submit a prescribed form
- Submit a standard impression sheet to the Bureau of Criminal Identification and Investigation

Please Note: the criminal records check report is no more than six months old

Ohio Notary Services

Public Record?

A criminal records check is not a public record. The following can access the report:

- The person who is the subject of the criminal records check or the person's representative
- The Ohio Secretary of State and their staff;
- And a court, hearing officer, or other necessary individual involved in a case dealing with a commission denial resulting from the criminal records check report

Ohio Notary Services

Criminal Records Check for Attorneys?

Attorneys are exempt from submitting a criminal records check

Ohio Notary Services

Criminal Records Check for Peace Officers?

- Peace Officers are required to upload their OPOTA Certificate to the Ohio Secretary of State
- The Ohio Revised Code defines a "Peace Officer" in section 2935.01

Ohio Notary Services

Disqualifying Offenses

A disqualifying Offenses is a crime of moral turpitude as defined in section 4776.10 of the Ohio Revised Code, a violation of a provision of Chapter 2913 of the Ohio Revised Code, or any offense under an existing or former law of this state, any other state, or the United States.

Ohio Notary Services

Term of Notary Commission

Each notary public shall hold office for the term of five years unless their commission is revoked

Ohio Notary Services

Exception
(for attorneys)

An attorney admitted to the practice of law in Ohio by the Supreme Court of Ohio, holds office as a notary public as long as:

- The person's principal place of business or the person's primary practice in Ohio;
- The attorney is in good standing before the Supreme Court of Ohio;
- And the commission is not revoked.

Ohio Notary Services

Jurisdiction

A notary public has statewide jurisdiction

Ohio Notary Services

Seal

Ohio Notary Services

Journal

On occasion, during court proceedings, notarized documents are challenged. Notaries public may receive a subpoena and testify in court. While notaries public are not required to keep a journal, a best practice is to do so.

Ohio Notary Services

Example

Notary Act Date: ____/____/____ Time: ____AM/PM	Description of Notarized Document :
Client Name: _____	☐ Affidavit ☐ Deed/Mortgage ☐ Trust
Address: _____	☐ Automobile Title ☐ POA-Power of Attorney ☐ Will
City/State:_____ Zip Code: _____	☐ Claim ☐ Other: _____
Signature: _____	Identity Established By: ☐ Credible Witness(es) ☐ Driver's License ☐ Military ID ☐ Passport
Notary Fee Charged: ☐ Yes $_____ ☐ No	☐ Personally Known ☐ State ID ☐Other:_____
Additional Comments	

Ohio Notary Services

Fees

Ohio Notary Services

Fees

- Up to five dollars ($5) for any notarial act that is not an online notarization
- For an online notarization, up to thirty dollars ($30)

Notaries public cannot charge both fees for the same act, and you are prohibited from charging or receiving an excessive fee

- In addition to these fees, a notary may charge a reasonable travel fee, as agreed to by the notary and the principal prior to the notarial act

Ohio Notary Services

Fees

A technology fee of up to ten dollars ($10.00)

Ohio Notary Services

Notarial Acts

Ohio Notary SERVICES

Notarial Acts

"Notarial acts" means acts which the laws and regulations of this state authorize notaries public of this state to perform

Ohio Notary Services

Notarial Acts ORC 147.51

- The administration of oaths and affirmations;
- Take and certify acknowledgements of deeds, mortgages, liens, powers of attorney, and other instruments of writing;
- Taking depositions

Ohio Notary Services

Notarial Acts/ Authorized Person ORC 147.52

- When proof of authorized person's authority is needed
- Foreign Proof
- Clerk of Court of Record
- Title and Signature

Ohio Notary Services

Notarial Steps

1. Verify the principal's identity
2. Create a journal entry
3. Administer the notarial act(s)
4. Complete the notarial certificate
5. Collect fee

Ohio Notary Services

When Notarizing a Document

Excluding online notarizations, does the principal have to personally appear before a notary public in order to have a document notarized?

Ohio Notary Services

When Notarizing a Document

Yes! No matter what the circumstance the principal is required to personally appear before the notary public in order to have the document notarized. Also, the principal is required to provide proper identification.

Ohio Notary Services

When Notarizing a Document

Failure to verify identification may result in fraud, liability issues, and/or monetary damages

Ohio Notary Services

Verifying Identity

- Identification must contain a person's photo or signature
- Must be current or expired less than three (3) years
- Satisfactory to the notary public

Ohio Notary Services

Designated Alternative Signer

An individual whose physical characteristics limit the individual's ability to sign a document presented for notarization may direct a designated alternative signer to sign on the individual's behalf

Ohio Notary Services

Signature by Mark

Physical disabilities or other characteristics can render a signer unable to sign except with a simple "X" or other identifying "mark."

Please Note:

- Signer must be able to make the mark on their own
- Signer must make the make with the "intent to sign"

Ohio Notary Services

Notarial Certificate

A notarial certificate means the part of, or attachment to, a document that is completed by the notary public and upon which the notary public places the notary public's signature and seal.

Ohio Notary Services

Notarial Certificates

A notary public shall provide a completed notarial certificate for every notarial act the notary public performs.

Ohio Notary Services

Notarial Certificates

If a notarial certificate incorrectly indicates the type of notarization performed, the notary public shall provide a correct certificate at no charge to the person signing in question

Ohio Notary Services

Notarial Certificates

A jurat certificate shall state that an oath or affirmation was administered to the signer with regard to the notarial act.

Ohio Notary Services

Notarial Certificates

A notary public may explain to a signer the difference between an acknowledgment and a jurat, but shall not, unless that notary is an attorney, advise the person on the type of notarial act that best suits a situation.

Ohio Notary Services

Determining the Type of Notarial Act

State of _ _ _ _ _

County of _ _ _ _ _

Before me, a Notary Public in and for said county and state, personally appeared the above named (name) who acknowledged before me that he/she did sign the foregoing instrument and that the same is his/her act and deed. In testimony where of, I have hereunto affixed my name and official seal at (city), Ohio, this (date) day of (year).

Ohio Notary Services

Determining the Type of Notarial Act

State of _ _ _ _ _

County of _ _ _ _ _

Before me, a Notary Public, in and for said county and state, personally appeared (name and title), who being by me duly sworn, deposes and says that...

Key words for jurats are: subscribed and sworn; sworn to; being duly sworn; jurat; or affirmed.

Ohio Notary Services

Acknowledgment

A declaration by an individual before a notary public that the individual has signed a record for the purpose stated in the record, and if the record is signed in a representative capacity, that the individual signed the record with proper authority and signed it as the act of the individual or entity identified in the record

Ohio Notary Services

Acknowledgment

A. The person acknowledging appeared before the notary public and acknowledged that they executed the instrument;
B. And the person acknowledging was known to the person taking the acknowledgment, or that the person taking the acknowledgment had satisfactory evidence that the person acknowledging was the person described in and who executed the instrument

Ohio Notary Services

Acknowledgment

Notaries public will ask if the acknowledgment is the principal's:

Free, Act, and Deed

Ohio Notary Services

Recognized Certificate of Acknowledgment

- Everyone should receive a notarial certificate
- If it is incorrect regarding the type of notarization performed, the notary must replace it for free

Ohio Notary Services

Recognized Certificate of Acknowledgment

The State of Ohio accepts acknowledgements if any of the following apply:

(A) The certificate is in a form prescribed by the laws or regulations of this state;

Ohio Notary Services

Recognized Certificate of Acknowledgment

The State of Ohio accepts acknowledgements if any of the following apply:

(B) The certificate is in a form prescribed by the laws or regulations applicable in the place in which the notarial act is taken;

Ohio Notary Services

Recognized Certificate of Acknowledgment

(C1) the certificate contains the words "acknowledged before me," or their substantial equivalent. Or

(C2) "Sworn to and subscribed before me," "affirmed to and subscribed before me," or their substantial equivalent, when executing a jurat.

Ohio Notary Services

Recognized Certificate of Acknowledgment

The notary should use the appropriate certificate and not confuse the two (acknowledgment vs jurat)

Ohio Notary Services

"Acknowledged Before Me" Defined

The words "acknowledged before me" means that:

(A) The person acknowledging appeared before the person taking the acknowledgment;

Ohio Notary Services

"Acknowledged Before Me" Defined

The words "acknowledged before me" means that:

(B) The person acknowledging acknowledged executing the instrument.

Ohio Notary Services

Steps for Administering an Acknowledgment

1. Verify the principal's identity
2. Create a journal entry
3. The principal signs; ask is this your free, act, and deed
4. Complete the notarial certificate
5. Collect fee

Ohio Notary Services

Acknowledgment for an Individual

State of _____

County of _____

The foregoing instrument was acknowledged before me this (date) by (name of person acknowledging).

(Signature of the person taking acknowledgment)

(Title or rank)

Ohio Notary Services

Acknowledgment for a Corporation

State of _____

County of _____

The foregoing instrument was acknowledged before me this (date) by (name of officer or agent, title of officer or agent) of (name of corporation acknowledging), a (state or place of incorporation) corporation, on behalf of the corporation.

(Signature of the person taking acknowledgment)

(Title or rank)

Ohio Notary Services

Acknowledgment for a Limited Liability Corporation

State of _ _ _ _ _

County of _ _ _ _ _

The foregoing instrument was acknowledged before me this (date) by (name of member or managing member, title of member or managing member) of (name of limited liability company acknowledging) a (jurisdiction of formation) limited liability company, on behalf of the limited liability company.

(Signature of the person taking acknowledgment)

(Title or rank)

Ohio Notary Services

Acknowledgment for a Partnership

State of _ _ _ _ _

County of _ _ _ _ _

The foregoing instrument was acknowledged before me this (date) by (name of acknowledging partner or agent), partner (or agent) on behalf of (name of partnership), a partnership.

(Signature of the person taking acknowledgment)

(Title or rank)

Ohio Notary Services

Acknowledgment for an Individual Acting as Principal by an Attorney

State of _ _ _ _ _

County of _ _ _ _ _

The foregoing instrument was acknowledged before me this (date) by (name of attorney in fact) as attorney in face on behalf of (name of principal).

(Signature of the person taking acknowledgment)

(Title or rank)

Ohio Notary Services

Acknowledgment for any Public Officer, Trustee, Administrator, Guardian, or Other Representative

State of _____

County of _____

The foregoing instrument was acknowledged before me this (date) by (name and title of position).

(Signature of the person taking acknowledgment)

(Title or rank)

Ohio Notary Services

Affidavit Defined

In Ohio, an affidavit is a "written declaration under oath."

If asked to notarize an affidavit, notaries public shall perform a jurat

Ohio Notary Services

Jurat Defined

"Jurat" means a notarial act in which both of the following are met:

- The signer of the notarized document is required to give an oath or affirmation that the statement in the notarized document is true and correct;
- The signer signs the notarized document in the presence of a notary public.

Ohio Notary Services

Steps for Administering a Jurat

1. Verify the principal's identity
2. Create a journal entry
3. Administer the Oath or Affirmation; the principal signs
4. Complete the notarial certificate
5. Collect fee

Ohio Notary Services

A Jurat may Take This Form

State of _____
County of_____
Sworn to or affirmed and subscribed before me by (name) this date of (date).
(Signature of notary public administering jurat)
(Seal)
(Title or rank)
(Commission expiration date)

Ohio Notary Services

Jurat Oath

Do you solemnly swear that the statements in this document are true, so help you God?

Ohio Notary Services

Jurat Affirmation

Do you affirm, under penalty of perjury, that the statements in this document are true?

Ohio Notary Services

Manner of Taking Depositions

Depositions taken by a person shall be taken on written interrogatories, on a written notice being given by the party desiring to take such depositions, which notice shall contain the names of the parties plaintiff and defendant, the court or tribunal in which the action is pending, the number of the regiment or battalion to which the witness belongs, and the names of the witnesses.

Ohio Notary Services

Electronic Notarizations

Electronic notarizations are NOT to be confused with Remote Online Notarizations (also know as RON).

Ohio Notary Services

Electronic Notarizations

In Ohio, notaries public with active commissions may perform electronic notarizations without any additional authorization from the Secretary of State

Ohio Notary Services

Electronic Notarizations

- An electronic notarization is a notarial act performed by a notary public using his or her electronic seal and electronic signature on a digital document
- An electronic notarization is an in-person act where the notarial act procedures remain the same

Ohio Notary Services

Electronic Notarizations

The requirements include:

- Personal (not remote) appearance;
- Verifying the identity of the signer;
- And completion of the notarial certificate by affixing:
- The notary's electronic signature;
- And the electronic seal to the certificate
- Authenticator certificate

Ohio Notary Services

Authenticator Certificate

I certify and warrant that the foregoing and annexed paper document being presented for record, to which this certification is attached, represents a true, exact, complete, and unaltered copy of the original electronic document. The county offices of the auditor, treasurer, recorder, and others necessary to effectuate the transfer and recording of the instrument shall be entitled to rely on such certification and warranty for all purposes.

Ohio Notary Services

Authenticator Certificate II

_____[signature of authenticator]

_____[printed name of authenticator]

_____[street address of authenticator]

_____[city, state, zip code of - authenticator]

_____[telephone number of - authenticator]

State of _____)
):ss
County of _____)

The foregoing authenticator certificate was subscribed and sworn to in my presence by _____[printed name of authenticator] on this __day of ____, 20XX

_____

Notary Public

Ohio Notary Services

Remote Online Notaries Public

Remote online notarizations are when a signer personally appears before the notary using audio-visual technology instead of being physically present in the same location as the notary

Ohio Notary Services

Remote Online Notarization (RON)

Remote Online Notaries are required to use an online notarization system to perform remote online notarizations

Ohio Notary Services

Online Notaries Public

Before an individual may be authorized to act as an online notary public, that individual is required to successfully complete a course of instruction approved by the Ohio Secretary of State and pass a test based the on the curriculum

Ohio Notary Services

How to Apply

When applying to become an online notary public, a notary public must:

- Be a legal resident of Ohio
- And state the name of the online notarization system and vendor they will use

A RON is only able to perform remote online notarizations when the RON is located in Ohio, although the signer can be outside of Ohio or outside of the United States at the time of the notarial act

Ohio Notary Services

Course of Instruction

- The Ohio Notary Services offers a two-hour (2) course of instruction and administers the test to become an online notary public
- Our course is approved by the Ohio Secretary of State
- Please visits the Ohio Notary Services website, for more information or to begin the process

  www.becomeanohionotary.com

Ohio Notary Services

Renewing a Notary Commission

Notaries public may apply to renew their notary's commission beginning three (3) months prior to the expiration date of the commission

Ohio Notary Services

Renewing a Notary Commission

To renew a notary commission a person must submit the following:

(1) A new criminal records check report;

(2) Pay a fee of not more than sixty dollars ($60)

(3) And an application for renewal on a prescribed form.

Ohio Notary Services

The Test

The test is a combination of thirty (30) questions

To pass the exam, a person must score at least eighty (80) percent correct to pass.

Ohio Notary Services

The Ohio Revised Code

From time to time, legislation affecting notaries public may change. As a notary public, a person should frequently check the Ohio Revised Code for changes!

Ohio Notary Services

NOTARY DOs AND DON'Ts

Developed by the late Akron Bar Association Bar Counsel

Attorney Wayne Rice

Ohio Notary SERVICES

Do

Review the document to make sure that all blanks are completed or lined through (except for the notary certificate).

- Ask the signer or the preparer of the document (if present) to fill in or line through all blanks.
- **DO NOT** do this yourself as this can be construed as preparing a document for someone else, which is the unauthorized practice of law.

Ohio Notary Services

Do

- You complete the notary certificate – this is your domain and your responsibility.
- No one can direct you as to what information goes into the notary certificate.
- Regardless of the date on the document, be sure that the notary certificate is dated with the date that the signer appears before you; *backdating* or *predating* a notary certificate is ***never*** permitted.

Ohio Notary Services

Do

- If the notary certificate is pre-printed and the wording is not substantially compliant with Ohio law, line through the incorrect language, make the appropriate correction and initial it.

Ohio Notary Services

Do

- If a notary certificate is not present, attach a separate sheet of paper to the document signature page (staple the top two corners to the document).
- In this situation, you will need to ask the signer if he or she wants an acknowledgment or jurat wording form; you can explain the difference but not suggest either format unless you are an attorney admitted to practice law in Ohio.

Ohio Notary Services

Do

- Satisfy yourself as to the identity of the signer.
- Unless you personally know the signer to be who he or she is, ask for a government-issued ID with the signature or photograph (preferably both), current or expired not more than three year from the date of the notarization.
- Note those are the minimum requirements by law, the notary can require additional info or credentials

Ohio Notary Services

Do Not

- Take someone else's word (even if you know him or her) as to the identity of the signer.
- Note: it is legal to allow a credible witness to vouch for someone's identity, but Ohio Revised Code 147.50 includes the specific instructions on how that can be allowed

Ohio Notary Services

Do Not

There are numerous cases where an unsuspecting notary has been taken advantage of by a client or an acquaintance who presents another individual as his or her spouse or other relative when that is not the case, and the notary does not insist on identification.

Ohio Notary Services

Do

- Have the signer declare they signed the record for the purpose stated in the record.
- Ensure the person signing in a representative capacity, signed the document with the proper authority, and signed it as the act of the individual or entity identified in the record.

Ohio Notary Services

Do Not

Attempt to explain the meaning or intent of the document or express an opinion about its content unless you an attorney licensed to practice law in Ohio.

Ohio Notary Services

Do – Maintain a Journal

Maintain a journal of your notarial acts.

Ohio Notary Services

Do – Maintain a Journal

- While it is not required in Ohio
  - it is an important tool that provides a written record of your official acts, as it
  - contains details of each transaction in the event a notarized document is lost or altered, facts concerning the notarization are challenged or if you are ever accused of an inadvertent or willful mistake.

Ohio Notary Services

Do – Maintain a Journal

- A well-kept journal can demonstrate that you are consistent in your practices;
  - establishing the identity of the signer
  - confirming the type of document, and
  - whether the notary certificate is an acknowledgment or a *jurat*,
  - requiring that the document be signed in your presence and that you administer an oath/affirmation,
  - and charging no more than the permitted fee.

Ohio Notary Services

Do – Develop a Routine

DO develop a routine procedure for notarizing documents.

- Make a checklist of the various steps that you need to do to complete a notarial act
- Keep a copy of that checklist with your notary equipment and journal so that you can follow it each time until the process becomes second nature to you.

Ohio Notary Services

Do – Develop a Routine

- By establishing and following a routine procedure, you can say with confidence that you do the same thing every time you notarize a document.
- This can be helpful in case there is ever a question as to your notarization of a document.

Ohio Notary Services

Do

- Ask the signer to raise his or her right hand when administering an oath or affirmation.
- While this is not a statutory requirement, it does help underscore the seriousness of the occasion.

Ohio Notary Services

Do – Vehicle Titles

- Remember
  - The notary certificate on vehicle titles for both the seller and the buyer is a jurat

Ohio Notary Services

Do – Vehicle Titles

- Remember
  - If you are being asked to notarize both parties' signatures, BOTH parties must sign the vehicle title in your presence and you must administer an oath/affirmation to BOTH.

Ohio Notary Services

Do Not

- Notarize a document which you also have signed.
- Notarize your own signature.
- Take your own deposition.

Ohio Notary Services

Do Not – Conflict of Interest

- Notarize a document for a transaction in which you have an interest, no matter how small or insignificant it may seem.

Ohio Notary Services

Do Not – Conflict of Interest

- A conflict of interest means a direct financial or other interest in the transaction.

Ohio Notary Services

Do Not – Conflict of Interest

EXAMPLE #1:

- You have a direct financial or other interest in the transaction in question, excluding the notary fees as authorized in Chapter 147 of the Revised Code.

Ohio Notary Services

Do Not – Conflict of Interest

EXAMPLE #2:

- You are named, individually or along with someone else, as a
  - Grantor / Grantee
  - Mortgagor / Mortgagee
  - Trustor / Trustee
  - Beneficiary
  - Vendor / Vendee
  - Lessor / Lessee
  - As a party in some other capacity to the transaction

Ohio Notary Services

Do Not

Certify that a document is either an original document or a true copy of another record.

- You may, however, notarize the signature of a holder of a document on a written statement certifying that the document is a true copy of an original document.

Ohio Notary Services

Do Not

Use a name or initial in signing certificates other than that by which you were commissioned.

Ohio Notary Services

Do Not

- Sign notarial certificates using a facsimile stamp unless
  - you have a physical disability that limits or prohibits your ability to make a written signature **and**
  - you have submitted written notice to the secretary of state with an example of the facsimile signature stamp.

Ohio Notary Services

Do Not

Affix your signature to a blank form of an affidavit/jurat or certificate of acknowledgment and deliver that form to another person with the intent that it be used as an affidavit/jurat or acknowledgment.

Ohio Notary Services

Do Not

Notarize a document if you know that the signer

- has been adjudicated mentally incompetent by a court of competent jurisdiction.
- Appears to be mentally incapable of understanding the nature and effect of the document at the time of the notarization.

Ohio Notary Services

Do Not

Alter anything in a written instrument after it has been signed.

Ohio Notary Services

Do Not

Amend or alter the notarial certificate after the notarization is complete.

Ohio Notary Services

Do Not

Notarize a signature on an incomplete or blank document.

Ohio Notary Services

Do Not

Take an acknowledgment of execution instead of an oath or affirmation if an oath or affirmation is required.

Ohio Notary Services

Do Not

Use the phrase "notario" or "notario publico" to advertise your services as a notary public, whether by sign, pamphlet, stationery, or other written communication, or by radio, television, or other non-written communication.

Ohio Notary Services

Do Not

Unless you are an attorney licensed to practice law in Ohio, **DO NOT:**

- Determine the validity of a power of attorney document or any other form designating a representative capacity, such as trustee, authorized officer, agent, personal representative, or guardian.

Ohio Notary Services

Do Not

Unless you are an attorney licensed to practice law in Ohio, **DO NOT:**

- Represent or advertise yourself as an immigration consultant or an expert in immigration matters.

Ohio Notary Services

Do Not

Unless you are an attorney licensed to practice law in Ohio, **DO NOT:**

- Solicit or accept compensation to prepare documents for or otherwise represent the interest of another person in a judicial or administrative proceeding, including a proceeding relating to immigration to the United States, United States citizenship, or related matters.

Ohio Notary Services

Do Not

Unless you are an attorney licensed to practice law in Ohio, **DO NOT:**

- Solicit or accept compensation to obtain relief of any kind on behalf of another from any officer, agency, or employee of this state or of the United States.

Ohio Notary Services

Penalties For All of the Do Nots

Ohio Revised Code Section 147.032 provides a general framework for investigations and penalties

Ohio Notary Services

Penalties For All of the Do Nots

The Secretary of State, after an investigation (initiated either by the Secretary of State or upon a signed complaint by any person), may do any of the following:

Ohio Notary Services

Penalties For All of the Do Nots

- Revoke your notary commission;
- Suspend it for a specified period or until fulfillment of a condition, such as retraining, or both; or
- Issue a letter of admonition that shall be placed in your record with the Secretary of State.

Ohio Notary Services

Penalties For All of the Do Nots

Other sections of Chapter 147 provide for mandatory penalties for specific violations

Ohio Notary Services

Penalties For All of the Do Nots

If you are convicted of or plead guilty or no contest to any of the disqualifying offenses listed in Section 147.05, you MUST self-report to the Secretary of State

Ohio Notary Services

Penalties For All of the Do Nots

- The Secretary of State will revoke your commission and you cannot apply for a subsequent notary commission.

Ohio Notary Services

Penalties For All of the Do Nots

If you perform any notarial acts after the expiration of your term of office or after you resign your commission, knowing that your term has expired or that you have resigned your commission, you shall forfeit no more than $500 to the State and be ineligible for reappointment.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

In addition to the foregoing penalties, an attorney who violates Chapter 147, also may be subject to disciplinary action for misconduct under the Ohio Rules of Professional Conduct.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Columbus Bar Assn. v. Chodosh: The attorney received a one-year stayed suspension for, among other things, making a settlement demand without the client's consent and then signing the client's name, signing his own name as a witness and then directing his secretary to notarize the client's signature without the client's knowledge.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Prof. Cond. R. 8.4(c): prohibiting a lawyer from engaging in conduct involving dishonesty, fraud, deceit or misrepresentation.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Disciplinary Counsel v. Clark: Respondent's law firm conducted a review of his client files and discovered that over a seven-year period, respondent had engaged in at least eight (8) incidents of false notarization and/or backdating of clients' legal documents.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

- *Disciplinary Counsel v. Clark:* In one instance, he actually witnessed his clients sign a warranty deed and notarized their signatures, but then he dated the document to coincide with the property's transfer date.
- He falsely attested to the date his clients had signed and acknowledged their signatures before him

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Disciplinary Counsel v. Clark: In another matter, respondent notarized signatures of clients returned by mail and falsely represented that the documents had been personally acknowledged before him.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Disciplinary Counsel v. Clark: After the law firm discovery, respondent resigned from the firm and self-reported his actions. He received a six-month stayed suspension.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Disciplinary Counsel v. Clark

- Prof. Cond. R. 8.4(c): Prohibiting a lawyer from engaging in conduct involving dishonesty, fraud, deceit or misrepresentation.
- Prof. Cond. R. 8.4(d): Prohibiting a lawyer from engaging in conduct that is prejudicial to the administration of justice.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Disciplinary Counsel v. Moore: Respondent received a public reprimand after she signed a client's name to an affidavit without indicating that the signature was not the client's or that she had signed the client's name with the client's authorization, notarizing the signature as the client's, and then filling it with the court.

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Prof. Cond. R. 3.3(a)(1): Prohibiting a lawyer from making a false statement of fact or law to a *tribunal*

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Section 147.03 provides that an attorney's notary commission has no expiration **as long as**

- The attorney is a resident of this state or has the attorney's principal place of business or primary practice in this state
- The attorney is in good standing before the Ohio Supreme Court

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

Section 147.03 provides that an attorney's notary commission has no expiration **as long as**

- The commission is not revoked.
- THE EXCEPTION: Remote Online Notary Authorization has a five-year expiration for attorneys too…

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

An attorney is considered to be in good standing with the Supreme Court when all the following apply:

- The attorney is admitted to the practice of law in Ohio;

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

An attorney is considered to be in good standing with the Supreme Court when all the following apply:

- The attorney is registered under Gov. Bar R. VI for the current biennium and all prior bienniums for which registration was required;

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

An attorney is considered to be in good standing with the Supreme Court when all the following apply:

- With the exception of a public reprimand, the attorney is not subject to a Supreme Court attorney-discipline order, (e.g., an order of suspension, including during any stayed period of suspension, when there is a disbarment, or resignation from practice);

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

An attorney is considered to be in good standing with the Supreme Court when all the following apply:

- If the attorney has been disciplined, the attorney has paid all costs ordered by the court (e.g., board costs, publication costs) and has otherwise complied with all requirements as ordered by the court;

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

An attorney is considered to be in good standing with the Supreme Court when all the following apply:

- If the attorney has been the subject of a CLE enforcement proceeding under Gov. Bar R. X, the attorney has paid any fees imposed by the court for the attorney's non-compliance with CLE requirements;

Ohio Notary Services

Penalties For All of the Do Nots (Attorney Version)

An attorney is considered to be in good standing with the Supreme Court when all the following apply:

- The attorney has not been held in contempt by the Supreme Court or, if the attorney has been held in contempt, the attorney has been purged of contempt.

Ohio Notary Services

The End

This concludes the Notary Dos and Don'ts Segment of the Presentation

Ohio Notary Services

How to Notarize an Ohio Vehicle Title

Ohio Notary Services

Certificate of Title

- A Certificate of Title, often referred to as a "title," is a commonly used document requiring the notarization of signatures.
- This document is used to transfer title of a motor vehicle to a buyer.

Ohio Notary Services

Certificate of Title

- On the Certificate of Title there are two sections in which a notarial act may occur;
  - the Assignment of Ownership, and
  - the Application for a Certificate of Title.

Ohio Notary Services

Assignment of Ownership

- This is a transfer of the title from one owner to the next.
- The title itself indicates a seller and buyer relationship.

Ohio Notary Services

Assignment of Ownership

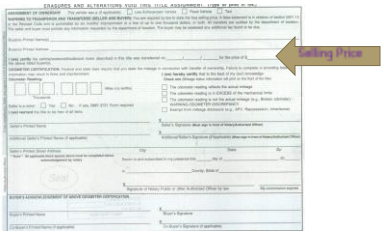
- This part of the document requires an affidavit in which the seller swears to the
  - true selling price,
  - the true odometer reading, and
  - provides the buyer's name and address.
- As this document requires an affidavit, **the notary public must perform a jurat.**

Ohio Notary Services

Assignment of Ownership

Ohio Notary Services

Assignment of Ownership



Ohio Notary Services

Completing the Top Half of the Title – Assignment of Ownership

- Complete PRIOR to Notarization by the Seller
  - Selling Price
  - Date of Sale/Delivery
  - Whether a Minor Consent Form is Required
  - Buyer(s) Legal Name and Address
  - Odometer Reading Along With Checking the Appropriate Box

Ohio Notary Services

Completing the Top Half of the Title

- Oath or Affirmation…Information True and Correct
- Signer Must Sign in the Presence of Notary
- The Notary Must:
  - Complete Certificate w/Signature
  - Venue
  - Date the Act Took Place
  - Typed/Printed/Stamped Name
  - Notary Seal
  - Expiration Date if Applicable

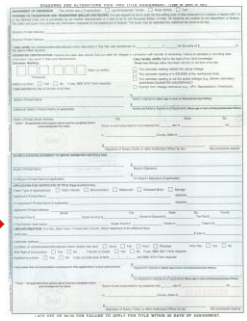
Ohio Notary Services

Completing the Top Half of the Title

- Revised Code 147.141(A)(13) – A Notary MAY
  - NOT Notarize if the Document is Incomplete or Blank
  - Have Their Notary Commission Revoked If They Do

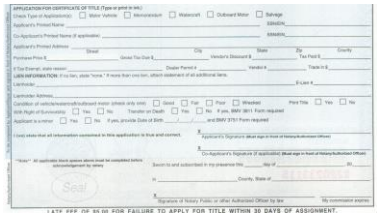
Ohio Notary Services

Completing the Bottom Half of the Title – Application for Certificate of Title



Ohio Notary Services

Completing the Bottom Half of the Title – Application for Certificate of Title



Ohio Notary Services

Completing the Bottom Half of the Title – Application for Certificate of Title

- After Seller Transfers the Title to the Buyer, the Buyer MUST:
  - Accept the Odometer Certification
  - Add Their Name and Address
  - Fill-in the Purchase Price and Other Required Financial Information
  - Complete the Vehicle Information
  - Add Lienholder's Information, if applicable
  - Indicate if Minor Consent Form is Required.

Ohio Notary Services

Completing the Bottom Half of the Title – Application for Certificate of Title

- Oath or Affirmation … Information True and Correct
- Signer Must Sign in the Presence of the Notary

Ohio Notary Services

Completing the Bottom Half of the Title – Application for Certificate of Title

- The Notary Must:
  - Complete Certificate w/Signature
  - Venue
  - Date the Act Took Place
  - Typed/Printed/Stamped Name
  - Notary Seal
  - Expiration Date if Applicable
- As this document requires an affidavit, **the notary public must perform a jurat.**

Ohio Notary Services

Completing the Bottom Half of the Title – Application for Certificate of Title

- Revised Code 147.141(A)(13) – A Notary MAY
  - NOT Notarize if the Document is Incomplete or Blank
  - Have Their Notary Commission Revoked if They Do

Ohio Notary Services

Title Transfers Involving a Licensed Ohio Motor Vehicle Dealer

- Effective April 2023
- Ohio Revised Code 4505.63
- Motor Vehicle Dealer licensed under ORC 4517

Ohio Notary Services

Title Transfers Involving a Licensed Ohio Motor Vehicle Dealer

- If dealer is a party to the transfer a notarization is NOT required on:
  - A motor vehicle certificate of title
  - An application for a motor vehicle certificate of title
  - Assignment of ownership to the motor vehicle.

Ohio Notary Services

Title Transfers Involving a Licensed Ohio Motor Vehicle Dealer

- If dealer is a party to the transfer, a notarization is NOT required on:
  - A power of attorney used for the purpose of titling a motor vehicle, or other document related to the titling of a motor vehicle that the dealer is required to provide to a clerk of court of common pleas.

Ohio Notary Services

The End

- This concludes the "How to Notarize a Vehicle Title in Ohio" segment.

Ohio Notary Services

Becoming an Ohio Notary

Test Specifics

- 30 Questions
- Random Question Generator
- One Hour
- Passing Score of 80%
- 30 Days for Retake if Fail
- Test Questions are Not Shared

Ohio Notary Services

Sample Question #1

A Notary Public who is not a licensed attorney holds office for:

A. 3 Years
B. Life
C. 5 Years
D. Until a New Governor Takes Office

Ohio Notary Services

Sample Answer #1

C. 5 Years

Ohio Revised Code Section 147.03

Ohio Notary Services

Sample Question #2

Which of the following statements is False?

A. A notary public does not need to use a stamp or seal.

B. A notary seal may either be one that stamps ink or that embosses a document.

C. The notary public's name may be printed, typewritten or stamped in legible printed letters near the notary public's signature.

D. The notary public must provide their own seal.

Ohio Notary Services

Sample Answer #2

A. A notary public does not need to use a stamp or seal.

Ohio Revised Code Section 147.04

Ohio Notary Services

Sample Question #3

The powers given to a notary public include which one of the following?

A. Giving legal advice and preparing legal documents
B. Preparing deeds and notarizing them
C. Taking acknowledgments on leases
D. Serving as a "notario publico?"

Ohio Notary Services

Sample Answer #3

A. Giving legal advice and preparing legal documents
B. Preparing deeds and notarizing them
C. Taking acknowledgments on leases
D. Serving as a "notario publico?"

Ohio Notary Services

Sample Question #4

Jack Jones is selling his car. The Ohio Certificate of Title lists Jack as the sole owner of the vehicle. Jack's sister, Jill, is a notary public. May Jill notarize Jack's signature on the Certificate of Title?

Ohio Notary Services

Sample Question #4

A. Yes, but only if Jack pays her to notarize his signature.
B. No, because a notary public may not notarize an instrument for a transaction in which he/she has a personal interest.
C. No, a notary public may NEVER notarize a relative's signature.
D. Yes, Jill may notarize Jack's signature because she does not have a personal interest in the transaction.

Ohio Notary Services

Sample Answer #4

A. Yes, but only if Jack pays her to notarize his signature.
B. No, because a notary public may not notarize an instrument for a transaction in which he/she has a personal interest.
C. No, a notary public may NEVER notarize a relative's signature.
D. Yes, Jill may notarize Jack's signature because she does not have a personal interest in the transaction.

Ohio Notary Services

Sample Answer #4

A. Yes, but only if Jack pays her to notarize his signature.

Ohio Notary Services

Sample Answer #4

B. No, because a notary public may not notarize an instrument for a transaction in which he/she has a personal interest.

Ohio Notary Services

Sample Answer #4

C. No, a notary public may NEVER notarize a relative's signature.

Ohio Notary Services

Sample Answer #4

D. Yes, Jill may notarize Jack's signature because she does not have a personal interest in the transaction.

Ohio Notary Services

The End

This concludes the Sample Test Questions Segment of the Presentation

2025 Notary Law Updates

Ohio Notary SERVICES

2025 Updates HB 315

- Ohio House Bill 315
- Effective April 4, 2025

Ohio Notary Services

2025 Updates HB 315

- Revised Section 147.01
- Secretary of State can revoke a commission based on a court order
- If the Secretary revokes a commission that person is ineligible for reappointment
- A new Notary must personally appear before another notary to take oath prior to completing a notarial act

Ohio Notary Services

2025 Updates
HB 315

- Revised Section 147.011
- Added a definition of "notary public"
- Specifies a notary
  - public is not an occupation or profession under Title XLVII of the revised code
  - Commission is not an occupational or professional license

Ohio Notary Services

2025 Updates
HB 315

- Revised Section 147.032
- Added language requiring notaries to cooperate with an investigation by the Secretary of State
- Requires the Secretary to revoke a commission if the notary does not cooperate with an investigation
- Allows the Secretary to revoke a notary commission for any act or omission by the notary public that demonstrates that the notary lacks the requisite honesty, integrity, competence, or reliability to act as a notary

Ohio Notary Services

2025 Updates
HB 315

- Revised Section 147.07
- Simplifies the language related to a notary public's jurisdiction to clearly specify that a notary public has statewide jurisdiction in Ohio.

Ohio Notary Services

2025 Updates
HB 315

- Ohio Revised Code 147.08
- RON Fees
- Technology Fee

Ohio Notary Services

2025 Updates
HB 315

- Revised Code 147.141
- Prohibited Acts

Ohio Notary Services

2025 Updates
HB 315

- Revised Code 147.49
- Acknowledgements
- Oaths and Affirmations

Ohio Notary Services

2025 Updates
HB 315

- Revised Code 147.50
- Personal Knowledge
- Satisfactory Evidence
- Acceptable ID
- Conflict of Interest

Ohio Notary Services

2025 Updates
HB 315

- Ohio Revised Code 147.53
- "Acknowledged Before Me"

Ohio Notary Services

2025 Updates
HB 315

- Ohio Revised Code 147.53
- Executing a Jurat
- Oath or Affirmation

Ohio Notary Services

2025 Updates
HB 315

- Ohio Revised Code 147.542
- Notarial Certificates

Ohio Notary Services

2025 Updates
HB 315

- Ohio Revised Code 147.591
- Electronically Notarized Documents
- Authenticator Certificate

Ohio Notary Services

The End

- This Concludes the 2025 Law Update Portion of This Presentation

Ohio Notary Services

Notary Public: Don't Forget!

- Education Content
  - Notary Reminders

Ohio Notary Services

Notarial Acts

"Notarial Acts" are acts which the laws and regulations of the State of Ohio authorize notaries public of this state to perform, including:

Notarial Acts

- The administration of oaths and affirmations;
- Taking proof of execution and acknowledgment of instruments;
- Attesting documents;
- And taking depositions.

Acknowledgment

- (A) The person acknowledging appears before the notary and acknowledged they executed the instrument;
- (B) The person acknowledging was known to the person taking the acknowledgment, or that the person taking the acknowledgment had satisfactory evidence that the person acknowledging was the person described in and who executed the instrument.

Acknowledgment

Notaries public will ask if the acknowledgment is the principal's:

Free, Act, and Deed

Recognized Certificate of Acknowledgment

The State of Ohio accepts acknowledgements if:

(A) The certificate is in a form prescribed by the laws or regulations of this state

Recognized Certificate of Acknowledgment

The State of Ohio accepts acknowledgements if:

(B) The certificate is in a form prescribed by the laws or regulations applicable in the place in which the acknowledgment is taken;

"Affidavit" Defined

- In Ohio, an affidavit is a "written declaration under oath.
- If asked to notarize an affidavit, the notary must perform a jurat.

Steps for Administering a Jurat

1. Verify the principal's identity
2. Create a journal entry
3. Administer the Oath or Affirmation; the principal signs
4. Complete the notarial certificate
5. Collect fee

Manner of Taking Depositions

Depositions shall be taken on written interrogatories, on a written notice being given by the party desiring to take such depositions, which notice shall contain the names of the parties plaintiff and defendant, the court or tribunal in which the action is pending, the number of the regiment or battalion to which the witness belongs, and the names of the witnesses.

Fees

A notary public is entitled to the following fees:

1. Up to five dollars ($5) for any notarial act that is not an online notarization
2. For an online notarization, up to thirty dollars ($30).
3. For an online notarization, up to ten dollars ($10) for a technology fee.

Fees

3. You can't charge both fees for the same act.
4. Notaries are prohibited from charging or receiving an excessive fee for performing a notarial act.

Fees

- Fees are not assessed on a "per signature" basis
- A notary may charge a reasonable travel fee, as agreed to by the notary and the principal prior to the notarial act.

Seal

The seal shall consist of the coat of arms of the state within a circle that is at least three-quarters of an inch, but not larger than one inch, in diameter and shall be surrounded by the words "notary public," "notarial seal," or words to that effect, the name of the notary public, and the words "State of Ohio."

Signature by Mark

- Physical disabilities or other characteristics can render a signer unable to sign except with a simple "X" or other identifying "mark."
- This does not mean the person does not have sufficient capacity to execute a document.

Signature by Mark

- Signer must be able to make the mark on their own
- Signer must make the mark with the "intent to sign."

Signature by Mark

- Ohio does not require an additional witness(es) for signature by mark.
- Neither the notary, nor a third party, may physically hold or guide the signer's hand to help them make the mark.

Designated Alternative Signer

An individual whose physical characteristics limit the individual's ability to sign a document presented for notarization may direct a designated alternative signer to sign on the individual's behalf.

Electronic Notarizations

A notary public with an active commission in Ohio may perform electronic notarizations without any additional authorization from the Secretary of State.

Electronic Notarizations

Electronic notarizations are NOT to be confused with Remote Online Notarizations.

Electronic Notarizations

- An electronic notarization is a notarial act performed by a notary public using his or her electronic seal and electronic signature on a digital document.
- An electronic notarization is an *in-person* act where the notarial act procedures remain the same.

Electronic Notarizations

The requirements include personal (NOT remote) appearance, verifying the identity of the signer, completion of the notarial certificate by affixing the notary's electronic signature and electronic seal to the certificate.

Updates to Secretary of State

- Name/Address Change – 30 Days
- Resignation – Form and Effective Date
- Guilty/No Contest - Crime of Moral Turpitude

Next Steps

- Criminal Records Check
- No older than six months
- Must list 147.022 as the Reason Code
- Must be Mailed to **You**
- Upload to the Secretary of State's Online Filing System

Ohio Notary Services

Next Steps

- Applying to the Secretary of State
- https://notary.ohiosos.gov/
- Upload PDFs
  - Criminal Record Check
  - Education Completion Certificate
    (This will be emailed to you within an hour of completing the video.)
  - $15.00 Fee

Ohio Notary Services

Fresh Start Act

- HB 263 - Criminal Records Check
- Generally Limited to a 5 Year "Look Back Period" for Offenses that are Not Violent or Sexually-Oriented.
- Appeal

Ohio Notary Services

Next Steps

- Supplies
- Ohio Notary Services has all the supplies you will need.
- https://www.ohionotarystore.com/

Ohio Notary Services

Becoming a Remote Online Notary Public in Ohio

An Ohio Notary Services, LLC Educational Presentation

Ohio Notary SERVICES

What You Need to Know

- You must be a commissioned Ohio notary public; or
- Obtaining your commission at the same time you are working on your remote online notary authorization

Ohio Notary Services

What You Need to Know

- You will need to select a remote online notary software platform.
- Ohio Notary Services* recommends using SIGNiX and information about it can be found here: https://www.becomeanohionotary.com/?pg=SIGNiX

*Please note: The Ohio Secretary of State does not recommend remote online notary platform providers.

Ohio Notary Services

Step #1

- Visit www.becomeanohionotary.com
- View 2-hour class
- Pass 30 question test
- Download successful completion certificate to your computer
  - This will be emailed to you within and hour of completing the test.

Ohio Notary Services

Step #2

- Visit the Ohio Secretary of State's website
  - https://www.sos.state.oh.us/notary/
- Select File Notary Commission Applications
  - You'll need to upload your completion certificate from Ohio Notary Services

Ohio Notary Services

Step #3

- Return to www.becomeanohionotary.com
- Select "Notary Supplies"
- Order a Digital Notary Seal

Ohio Notary Services

Step #4

- There isn't a Step #4.
- You're done!
- Your authorization as a remote online notary public will expire at the SAME TIME as your notary public commission.
- If you are an attorney, you have five years until it expires.

Ohio Notary Services

Next Steps

- Errors & Omissions Insurance
- CNA Surety
- www.becomeanohionotary.com

Ohio Notary Services

Next Steps

- Notary Closing (Signing) Agents
- Ohio Land Title Association
- www.becomeanohionotary.com

Ohio Notary Services

Renewing Your Ohio Notary Public Commission

An Ohio Notary Services, LLC Educational Presentation

Ohio Notary SERVICES

Step #1

- Obtain a formal Bureau of Criminal Investigation (BCI) background check
- https://www.ohioattorneygeneral.gov/Business/Services-for-Business/WebCheck
- Use Code 147.022
- Have Report Sent to **You!**

Ohio Notary Services

Step #2

- Visit www.becomeanohionotary.com
- View 1-hour class
- Download successful completion certificate to your computer

Ohio Notary Services

Step #3

- Visit the Ohio Secretary of State's website
  - https://www.sos.state.oh.us/notary/
- Select File Notary Commission Applications
  - You'll need to upload your background check and completion certificate from Ohio Notary Services.

Ohio Notary Services

Step #4

- www.becomeanohionotary.com
- Select "Notary Supplies"
- Order a Notary Stamp and Seal with Your New Expiration Date
- Notary Bundle 2 is Our Most Popular (we get asked)
- Notary Bundles Have Free Shipping

Ohio Notary Services

Step #5

- There isn't a Step #5.
- You're done!
- Visit Us Again in Five Years When It Is Time to Renew Your Commission Again!

Ohio Notary Services

Becoming an Ohio Notary Wrap-Up

Ohio Notary SERVICES

Closing

- Thank You
- Who is Ohio Notary Services?
- Purpose of this Education

Ohio Notary Services

What We Covered

- 2019 Notary Revisions
- 2025 Updates

Ohio Notary Services

What We Covered

- Education Content
  - Notary Public 101

Ohio Notary Services

What We Covered

- Education Content
  - Dos and Don'ts for Notaries Public

Ohio Notary Services

What We Covered

- Education Content
  - Dos and Don'ts for Attorney Notaries

Ohio Notary Services

What We Covered

- Education Content
  - Notarizing a Vehicle Title

Ohio Notary Services

What We Covered

- Education Content
  - Sample Test Questions

Ohio Notary Services

Hints for Completing this Video

- Re-watching the Video
- Do NOT Click Complete UNTIL You are Done
- Allow 60 Uninterrupted Minutes to Take the 30 Question Test
- Secure/Stable Internet Connection
- Using Mobile Phones for the Test

Ohio Notary Services

Notary Resources

- www.becomeanohionotary.com
  - Blog
  - FAQ
- info@becomeanohionotary.com
- It Is the Notary's Responsibility to Stay Up-To-Date on Notary Law Changes
- Don't Forget Your Expiration Date!

Ohio Notary Services

The End

- Thank you for choosing Ohio Notary Services as your Ohio notary education and testing partner!
- We'll see you in five (5) years when it is time to renew your commission.
- A special thank you to Nancy Musci, Wayne Rice, Thomas Petropoulos and C. Allen Nichols for their help producing this video.

Ohio Notary Services

Ohio and Remote Online Notarization (RON)

An Ohio Notary Services, LLC Educational Presentation

Introduction

- Welcome
- Who I Am
- Purpose of this Education

Ohio Notary Services

Who Makes the Online Notary Rules?

- General Assembly
- Secretary of State
- 2025 Updates

Ohio Notary Services

Definitions

- Appear in Person
- Credential Analysis
- Dynamic Knowledge-Based Authentication
- Electronic
- Electronic Document

Ohio Notary Services

Definitions II

- Electronic Seal
- Electronic Signature
- Identity Proofing
- Notarial Act

Ohio Notary Services

Definitions III

- Online Notarization
- Online Notary Public
- Principal
- Remote Presentation
- Territory of the United States

Ohio Notary Services

Application Requirements/ Procedures

- Be A Current Notary Public (or in the Process) & Resident - https://notary.ohiosos.gov
  - Same Name
- Notarization System, Technology or Vendor of the Platform
- Comply with the Rules
- E-mail Address
- Decrypting Instructions, Keys, Codes or Software
- Education and Testing from Ohio Notary Services, LLC

Ohio Notary Services

Application Requirements/ Procedures

- Disclose License or Commission Revocations
- $20 Fee to Secretary of State
- $250 for Education and Testing
- Don't Fail the Test!
- Written authorization
- Expiration of Authorization
- Technology
  - Change
  - Multiple Technologies?
  - New Technology

Ohio Notary Services

Renewing the Online Notary Authorization

- When to Apply
- Where to Apply
- What You Need to Apply
  - Proof of Education
  - Update Any Information in Original Application
  - $20 to the Secretary of State
- Education Issues – www.becomeanohionotary.com
  - Fee
  - How Soon?
- Duty to Inform – Disqualifying Offenses

Ohio Notary Services

Renewing the Online Notary Authorization II

- Meet All Requirements
- Attorneys
- Non-Attorneys
- Renew Notary Commission and Online Authorization at Same Time?
- What Happens If You Don't Renew in Time?

Ohio Notary Services

Electronic Notarial Acts: An Overview

- Authority
- Technological Requirements
- Electronic Seal
- Things to Know
  - Original Document
  - Signer/Principal Doesn't Have to be In Ohio
  - Signer/Principal Doesn't Have to be In the United States
  - ALL Signatures Must Be Electronic

Ohio Notary Services

Are You Who You Say You Are?

- Identity Determination
- Method One
- Method Two
- Method Three

Ohio Notary Services

Obligations to Refuse to Conduct an Online Notarial Act

- Identity
- Security
- Signature of the Principal
- Tamper Evident

Ohio Notary Services

Electronic Journal

- Requirements: What to Record?
  - The date and time
  - Type of act
  - What kind of document
  - Electronic signatures
  - Full name and address of each principal
  - How identified principal
  - Where notarized
  - Description of the online notarization system
  - Fee
  - Location of principal
  - Recording
  - Other?
  - DO NOT RECORD A SOCIAL SECURITY NUMBER

Ohio Notary Services

Electronic Journal: Practicalities & Safeguards

- Audio/Video Recording
- System Specifics
- Safeguards
- Employee Control – NOT Employer
- How Long to Maintain
- What Happens if I Renew My Authorization?
- Who Is Allowed to See the Journal?
  - Exceptions
  - Attorneys

Ohio Notary Services

Fee for Online Notarial Act?

- Required?
- $30.00
- Per Signature?
- Technology Fee

Ohio Notary Services

Investigation and Discipline

- Written Complaint
- Investigate
- Written Notice
- Hearing
- Report and Recommendation
  - No Action
  - Revoke
  - Suspend
  - Admonish
- May NOT Reapply

Ohio Notary Services

Ohio Notary Services, LLC

- www.becomeanohionotary.com
- 330.436.0118
- info@becomeanohionotary.com

Ohio Notary Services